

The History of England - a Study in Political Evolution

A. F. Pollard

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OF ENGLAND - A STUDY IN POLITICAL EVOLUTION ***

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THE HISTORY OF ENGLAND A STUDY IN POLITICAL EVOLUTION

BY A. F. POLLARD, M.A., LITT.D.

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CHAPTER I

THE FOUNDATIONS OF ENGLAND

55 B.C.—A.D. 1066

"Ah, well," an American visitor is said to have soliloquized on the site of the battle of Hastings, "it is but a little island, and it has often been conquered." We have in these few pages to trace the evolution of a great empire, which has often conquered others, out of the little island which was often conquered itself. The mere incidents of this growth, which satisfied the childlike curiosity of earlier generations, hardly appeal to a public which is learning to look upon historical narrative not as a simple story, but as an interpretation of human development, and upon historical fact as the complex resultant of character and conditions; and introspective readers will look less for a list of facts and dates marking the milestones on this national march than for suggestions to explain the formation of the army, the spirit of its leaders and its men, the progress made, and the obstacles overcome. No solution of the problems presented by history will be complete until the knowledge of man is perfect; but we cannot approach the threshold of understanding without realizing that our national achievement has been the outcome of singular powers of assimilation, of adaptation to changing circumstances, and of elasticity of system. Change has been, and is, the breath of our existence and the condition of our growth.

Change began with the Creation, and ages of momentous development are shrouded from our eyes. The land and the people are the two foundations of English history; but before history began, the land had received the insular configuration which has largely determined its fortune; and the various peoples, who were to mould and be moulded by the land, had differentiated from the other races of the world. Several of these peoples had occupied the land before its conquest by the Anglo-Saxons, some before it was even Britain. Whether neolithic man superseded palaeolithic man in these islands by invasion or by domestic evolution, we do not know; but centuries before the Christian era the Britons overran the country and superimposed themselves upon its swarthy, squat inhabitants. They mounted comparatively high in the scale of civilization; they tilled the soil, worked mines, cultivated various forms of art, and even built towns. But their loose tribal organization left them at the mercy of the Romans; and though Julius Caesar's two raids in 55 B.C. and 54 B.C. left no permanent results, the conquest was soon completed when the Romans came in earnest in A.D. 43.

The extent to which the Romans during the three and a half centuries of their rule in Britain civilized its inhabitants is a matter of doubtful inference. The remains of Roman roads, Roman walls, and Roman villas still bear witness to their material activity; and an occupation of the land by Roman troops and Roman officials, spread over three hundred and fifty years, must have impressed upon the upper classes of the Britons at least some acquaintance with the language, religion, administration, and social and economic arrangements of the conquerors. But, on the whole, the evidence points rather to military occupation than to colonization; and the Roman province resembled more nearly a German than a British colony of to-day. Rome had then no surplus population with which to fill new territory; the only emigrants were the soldiers, the officials, and a few traders or prospectors; and of these most were partially Romanized

provincials from other parts of the empire, for a Roman soldier of the third century A.D. was not generally a Roman or even an Italian. The imperial government, moreover, considered the interests of Britain not in themselves but only as subordinate to the empire, which any sort of distinctive national organization would have threatened. This distinguishes Roman rule in Britain from British rule in India; and if the army in Britain gradually grew more British, it was due to the weakness and not to the policy of the imperial government. There was no attempt to form a British constitution, or weld British tribes into a nation; for Rome brought to birth no daughter states, lest she should dismember her all-embracing unity. So the nascent nations warred within and rent her; and when, enfeebled and distracted by the struggle, she relaxed her hold on Britain, she left it more cultivated, perhaps, but more enervated and hardly stronger or more united than before.

Hardier peoples were already hovering over the prey. The Romans had themselves established a "count of the Saxon shore" to defend the eastern coasts of Britain against the pirates of the German Ocean; and it was not long after its revolt from Rome in 410, that the Angles and Saxons and Jutes discovered a chance to meddle in Britain, torn as it was by domestic anarchy, and threatened with inroads by the Picts and Scots in the north. Neither this temptation nor the alleged invitation from the British chief Vortigern to come over and help, supplied the original impulse which drove the Angles and Saxons across the sea. Whatever its origin—whether pressure from other tribes behind, internal dissensions, or the economic necessities of a population growing too fast for the produce of primitive farming—the restlessness was general; but while the Goths and the Franks poured south over the Roman frontiers on land, the Angles and Saxons obeyed a prophetic call to the sea and the setting sun.

This migration by sea is a strange phenomenon. That nations should wander by land was no new thing; but how in those days whole tribes

transported themselves, their wives and their chattels, from the mouths of the Elbe and the Weser to those of the Thames and the Humber, we are at a loss to understand. Yet come they did, and the name of the Angles at least, which clung to the land they reached, was blotted out from the home they left. It is clear that they came in detachments, as their descendants went, centuries later, to a land still further west; and the process was spread over a hundred years or more. They conquered Britain blindly and piecemeal; and the traditional three years which are said to have elapsed between the occupation of Sheppey and the landing in Kent prove not that the puny arm of the intervening sea deterred those who had crossed the ocean, but that Sheppey was as much as these petrels of the storm could manage. The failure to dislodge them, and the absence of centralized government and national consciousness among the Britons encouraged further invaders; and Kent, east of the Medway, and the Isle of Wight may have been the next morsels they swallowed. These early comers were Jutes, but their easy success led to imitation by their more numerous southern neighbours, the Angles and Saxons; and the torrent of conquest grew in volume and rapidity. Invaders by sea naturally sailed or rowed up the rivers, and all conquerors master the plains before the hills, which are the home of lost causes and the refuge of native states. Their progress may be traced in the names of English kingdoms and shires: in the south the Saxons founded the kingdoms of Sussex, Essex, Middlesex, and Wessex; in the east the Anglians founded East Anglia, though in the north they retained the Celtic names, Bernicia and Deira. The districts in which they met and mingled have less distinctive names; Surrey was perhaps disputed between all the Saxon kingdoms, Hampshire between West Saxons, South Saxons, and Jutes; while in the centre Mercia was a mixed march or borderland of Angles and Saxons against the retiring Britons or Welsh.

It used to be almost a point of honour with champions of the superiority of Anglo-Saxon virtues to maintain that the invaders, like the Israelites of

old, massacred their enemies to a man, if not also to a woman and child. Massacre there certainly was at Anderida and other places taken by storm, and no doubt whole British villages fled at the approach of their bloodthirsty foes; but as the wave of conquest rolled from east to west, and the concentration of the Britons grew while that of the invader relaxed, there was less and less extermination. The English hordes cannot have been as numerous in women as in men; and in that case some of the British women would be spared. It no more required wholesale slaughter of the Britons to establish English language and institutions in Britain than it required wholesale slaughter of the Irish to produce the same results in Ireland; and a large admixture of Celtic blood in the English race can hardly be denied.

Moreover, the Anglo-Saxons began to fight one another before they ceased to fight their common enemy, who must have profited by this internecine strife. Of the process by which the migrating clans and families were blended into tribal kingdoms, we learn nothing; but the blending favoured expansion, and expansion brought the tribal kingdoms into hostile contact with tougher rivals than the Britons. The expansion of Sussex and Kent was checked by Saxons who had landed in Essex or advanced up the Thames and the Itchen; East Anglia was hemmed in by tribes who had sailed up the Wash, the Humber, and their tributaries; and the three great kingdoms which emerged out of the anarchy—Northumbria, Mercia, and Wessex—seem to have owed the supremacy, which they wielded in turn, to the circumstance that each possessed a British hinterland into which it could expand. For Northumbria there was Strathclyde on the west and Scotland on the north; for Mercia there was Wales; and for Wessex there were the British remnants in Devon and in Cornwall.

But a kingdom may have too much hinterland. Scotland taxed for centuries the assimilative capacity of united England; it was too much for

Northumbria to digest. Northumbria's supremacy was distinguished by the religious labours of Aidan and Cuthbert and Wilfrid in England, by the missions of Willibrord on the Continent, and by the revival of literature and learning under Caedmon and Bede; but it spent its substance in efforts to conquer Scotland, and then fell a victim to the barbaric strength of Mercia and to civil strife between its component parts, Bernicia and Deira. Mercia was even less homogeneous than Northumbria; it had no frontiers worth mention; and in spite of its military prowess it could not absorb a hinterland treble the size of the Wales which troubled Edward I. Wessex, with serviceable frontiers consisting of the Thames, the Cotswolds, the Severn, and the sea, and with a hinterland narrowing down to the Cornish peninsula, developed a slower but more lasting strength. Political organization seems to have been its forte, and it had set its own house in some sort of order before it was summoned by Ecgberht to assume the lead in English politics. From that day to this the sceptre has remained in his house without a permanent break.

Some slight semblance of political unity was thus achieved, but it was already threatened by the Northmen and Danes, who were harrying England in much the same way as the English, three centuries earlier, had harried Britain. The invaders were invaded because they had forsaken the sea to fight one another on land; and then Christianity had come to tame their turbulent vigour. A wave of missionary zeal from Rome and a backwash from unconquered Ireland had met at the synod of Whitby in 664, and Roman priests recovered what Roman soldiers had lost. But the church had not yet armed itself with the weapons of the world, and Christian England was no more a match than Christian Britain had been for a heathen foe. Ecgberht's feeble successors in Wessex, and their feeblers rivals in the subordinate kingdoms, gave way step by step before the Danes, until in 879 Ecgberht's grandson Alfred the Great was, like a second King Arthur, a fugitive lurking in the recesses of his disappearing realm.

Wessex, however, was more closely knit than any Celtic realm had been; the Danes were fewer than their Anglo-Saxon predecessors; and Alfred was made of sterner stuff than early British princes. He was typical of Wessex; moral strength and all-round capacity rather than supreme ability in any one direction are his title-deeds to greatness. After hard fighting he imposed terms of peace upon the Danish leader Guthrum. England south-west of Watling Street, which ran from London to Chester, was to be Alfred's, the rest to be Danish; and Guthrum succumbed to the pacifying influence of Christianity. Not the least of Alfred's gains was the destruction of Mercia's unity; its royal house had disappeared in the struggle, and the kingdom was now divided; while Alfred lost his nominal suzerainty over north-east England, he gained a real sovereignty over south-west Mercia. His children, Edward the Elder and Ethelfleda, the Lady of the Mercians, and his grandson Athelstan, pushed on the expansion of Wessex thus begun, dividing the land as they won it into shires, each with a burh (borough) or fortified centre for its military organization; and Anglo-Saxon monarchy reached its zenith under Edgar, who ruled over the whole of England and asserted a suzerainty over most of Britain.

It was transitory glory and superficial unity; for there was no real possibility of a national state in Anglo-Saxon-Celtic-Danish England, and the whole meaning of English history is missed in antedating that achievement by several hundred years. Edgar could do no more than evade difficulties and temporize with problems which imperceptible growth alone could solve; and the idealistic pictures of early England are not drawn from life, but inspired by a belief in good old days and an unconscious appreciation of the polemical value of such a theory in political controversy. Tacitus, a splenetic Roman aristocrat, had satirized the degeneracy of the empire under the guise of a description of the primitive virtues of a Utopian Germany; and modern theorists have found in his *Germania* an armoury of democratic weapons against aristocracy and despotism. From this golden

age the Angles and Saxons are supposed to have derived a political system in which most men were free and equal, owning their land in common, debating and deciding in folkmoots the issues of peace and war, electing their kings (if any), and obeying them only so far as they inspired respect. These idyllic arrangements, if they ever existed, did not survive the stress of the migration and the struggle with the Celts. War begat the king, and soon the church baptized him and confirmed his power with unction and biblical precedents. The moot of the folk became the moot of the Wise (Witan), and only those were wise whose wisdom was apparent to the king. Community of goods and equality of property broke down in the vast appropriation involved in the conquest of Britain; and when, after their conversion to Christianity, the barbarians learnt to write and left authentic records, they reveal a state of society which bears some resemblance to that of medieval England but little to that of the mythical golden age.

Upon a nation of freemen in arms had been superimposed a class of military specialists, of whom the king was head. Specialization had broken down the system by which all men did an equal amount of everything. The few, who were called thegns, served the king, generally by fighting his enemies, while the many worked for themselves and for those who served the king. All holders of land, however, had to serve in the national levy and to help in maintaining the bridges and primitive fortifications. But there were endless degrees of inequality in wealth; some now owned but a fraction of what had been the normal share of a household in the land; others held many shares, and the possession of five shares became the dividing line between the class from which the servants of the king were chosen and the rest of the community. While this inequality increased, the tenure of land grew more and more important as the basis of social position and political influence. Land has little value for nomads, but so soon as they settle its worth begins to grow; and the more labour they put into the land, the higher rises its value and the less they want to leave it; in a purely

agricultural community land is the great source of everything worth having, and therefore the main object of desire.

But it became increasingly difficult for the small man to retain his holding. He needed protection, especially during the civil wars of the Heptarchy and the Danish inroads which followed. There was, however, no government strong enough to afford protection, and he had to seek it from the nearest magnate, who might possess armed servants to defend him, and perhaps a rudimentary stronghold within which he might shelter himself and his belongings till the storm was past. The magnate naturally wanted his price for these commodities, and the only price that would satisfy him was the poor man's land. So many poor men surrendered the ownership of their land, receiving it back to be held by them as tenants on condition of rendering various services to the landlord, such as ploughing his land, reaping his crops, and other work. Generally, too, the tenant became the landlord's "man," and did him homage; and, thirdly, he would be bound to attend the court in which the lord or his steward exercised jurisdiction.

This growth of private jurisdiction was another sign of the times. Justice had once been administered in the popular moots, though from very early times there had been social distinctions. Each village had its "best" men, generally four in number, who attended the moots of the larger districts called the Hundreds; and the "best" were probably those who had inherited or acquired the best homesteads. This aristocracy sometimes shrank to one, and the magnate, to whom the poor surrendered their land in return for protection, often acquired also rights of jurisdiction, receiving the fines and forfeits imposed for breaches of the law. He was made responsible, too, for the conduct of his poorer neighbours. Originally the family had been made to answer for the offences of its members; but the tie of blood-relationship weakened as the bond of neighbourhood grew stronger with attachment to the soil; and instead of the natural unit of the family, an artificial unit was

created for the purpose of responsibility to the law by associating neighbours together in groups of ten, called peace-pledges or frith-borhs. It is at least possible that the "Hundred" was a further association of ten frith-borhs as a higher and more responsible unit for the administration of justice. But the landless man was worthless as a member of a frith-borh, for the law had little hold over a man who had no land to forfeit and no fixed habitation. So the landless man was compelled by law to submit to a lord, who was held responsible for the behaviour of all his "men"; his estate became, so to speak, a private frith-borh, consisting of dependents instead of the freemen of the public frith-borhs. These two systems, with many variations, existed side by side; but there was a general tendency for the freemen to get fewer and for the lords to grow more powerful.

This growth of over-mighty subjects was due to the fact that a government which could not protect the poorest could not restrain the local magnates to whom the poor were forced to turn; and the weakness of the government was due ultimately to the lack of political education and of material resources. The mass of Englishmen were locally minded; there was nothing to suggest national unity to their imagination. They could not read, they had no maps, nor pictures of crowned sovereigns, not even a flag to wave; none, indeed, of those symbols which bring home to the peasant or artisan a consciousness that he belongs to a national entity. Their interests centred round the village green; the "best" men travelled further afield to the hundred and shire-moot, but anything beyond these limits was distant and unreal, the affair of an outside world with which they had no concern. Anglo-Saxon patriotism never transcended provincial boundaries.

The government, on the other hand, possessed no proper roads, no regular means of communication, none of those nerves which enable it to feel what goes on in distant parts. The king, indeed, was beginning to supply the deficiencies of local and popular organization: a special royal

peace or protection, which meant specially severe penalties to the offender, was being thrown over special places like highways, markets, boroughs, and churches; over special times like Sundays, holy days, and the meeting-days of moots; and over special persons like priests and royal officials. The church, too, strove to set an example of centralized administration; but its organization was still monastic rather than parochial and episcopal, and even Dunstan failed to cleanse it of sloth and simony. With no regular system of taxation, little government machinery, and no police, standing army, or royal judges, it was impossible to enforce royal protection adequately, or to check the centrifugal tendency of England to break up into its component parts. The monarchy was a man rather than a machine; a vigorous ruler could make some impression, but whenever the crown passed to a feeble king, the reign of anarchy recommenced.

Alfred's successors annexed the Danelaw which Alfred had left to Guthrum, but their efforts to assimilate the Danes provoked in the first place a reaction against West Saxon influence which threatened more than once to separate England north of the Thames from Wessex, and, secondly, a determination on the part of Danes across the sea to save their fellow-countrymen in England from absorption. Other causes no doubt assisted to bring about a renewal of Danish invasion; but the Danes who came at the end of the tenth century, if they began as haphazard bands of rovers, greedy of spoil and ransom, developed into the emissaries of an organized government bent on political conquest. Ethelred, who had to suffer from evils that were incurable as well as for his predecessors' neglect, bought off the raiders with ever-increasing bribes which tempted them to return; and by levying Danegeld to stop invasion, set a precedent for direct taxation which the invaders eventually used as the financial basis of efficient government. At length a foolish massacre of the Danish "uitlanders" in England precipitated the ruin of Anglo-Saxon monarchy; and after heroic

resistance by Edmund Ironside, England was absorbed in the empire of Canute.

Canute tried to put himself into the position, while avoiding the mistakes, of his English predecessors. He adopted the Christian religion and set up a force of hus-earls to terrify local magnates and enforce obedience to the English laws which he re-enacted. His division of England into four great earldoms seems to have been merely a casual arrangement, but he does not appear to have checked the dangerous practice by which under Edgar and Ethelred the ealdormen had begun to concentrate in their hands the control of various shires. The greater the sphere of a subject's jurisdiction, the more it menaced the monarchy and national unity; and after Canute's empire had fallen to pieces under his worthless sons, the restoration of Ecgberht's line in the person of Edward the Confessor merely provided a figurehead under whose nominal rule the great earls of Wessex, Mercia, Northumbria, and East Anglia fought at first for control of the monarchy and at length for the crown itself. The strife resolved itself into a faction fight between the Mercian house of Leofric and the West Saxon house of Godwine, whose dynastic policy has been magnified into patriotism by a great West Saxon historian. The prize fell for the moment on Edward's death to Godwine's son, Harold, whose ambition to sit on a throne cost him his life and the glory, which otherwise might have been his, of saving his country from William the Norman. As regent for one of the scions of Ecgberht's house, he might have relied on the co-operation of his rivals; as an upstart on the throne he could only count on the veiled or open enmity of Mercians and Northumbrians, who regarded him, and were regarded by him, as hardly less foreign than the invader from France.

The battle of Hastings sums up a series and clinches an argument. Anglo-Saxondom had only been saved from Danish marauders by the personal greatness of Alfred; it had utterly failed to respond to Edmund's call to arms

against Canute, and the respite under Edward the Confessor had been frittered away. Angles and Saxons invited foreign conquest by a civil war; and when Harold beat back Tostig and his Norwegian ally, the sullen north left him alone to do the same by William. William's was the third and decisive Danish conquest of a house divided against itself; for his Normans were Northmen with a French polish, and they conquered a country in which the soundest elements were already Danish. The stoutest resistance, not only in the military but in the constitutional and social sense, to the Norman Conquest was offered not by Wessex but by the Danelaw, where personal freedom had outlived its hey-day elsewhere; and the reflection that, had the English re-conquest of the Danelaw been more complete, so, too, would have been the Norman Conquest of England, may modify the view that everything great and good in England is Anglo-Saxon in origin. England, indeed, was still in the crudest stages of its making; it had as yet no law worth the name, no trial by jury, no parliament, no real constitution, no effective army or navy, no universities, few schools, hardly any literature, and little art. The disjointed and unruly members of which it consisted in 1066 had to undergo a severe discipline before they could form an organic national state.

CHAPTER II

THE SUBMERGENCE OF ENGLAND

1066-1272

For nearly two centuries after the Norman Conquest there is no history of the English people. There is history enough of England, but it is the history of a foreign government. We may now feel pride in the strength of our conqueror or pretend claims to descent from William's companions. We may boast of the empire of Henry II and the prowess of Richard I, and we may celebrate the organized law and justice, the scholarship and the architecture, of the early Plantagenet period; but these things were no more English than the government of India to-day is Hindu. With Waltheof and Hereward English names disappear from English history, from the roll of sovereigns, ministers, bishops, earls, and sheriffs; and their place is taken by names beginning with "fitz" and distinguished by "de." No William, Thomas, Henry, Geoffrey, Gilbert, John, Stephen, Richard, or Robert had played any part in Anglo-Saxon affairs, but they fill the pages of England's history from the days of Harold to those of Edward I. The English language went underground, and became the patois of peasants; the thin trickle of Anglo-Saxon literature dried up, for there was no demand for Anglo-Saxon among an upper class which wrote Latin and spoke French. Foreigners ruled and owned the land, and "native" became synonymous with "serf."

Their common lot, however, gave birth to a common feeling. The Norman was more alien to the Mercian than had been Northumbrian or West-Saxon, and rival tribes at last discovered a bond of unity in the impartial rigour of their masters. The Norman, coming from outside and exempt from local prejudice, applied the same methods of government and exploitation to all parts of England, just as Englishmen bring the same ideas to bear upon all parts of India; and in both cases the steady pressure of a superimposed civilization tended to obliterate local and class divisions. Unwittingly Norman and Angevin despotism made an English nation out of Anglo-Saxon tribes, as English despotism has made a nation out of Irish septs, and will make another out of the hundred races and religions of our Indian empire. The more efficient a despotism, the sooner it makes itself impossible, and the greater the problems it stores up for the future, unless it can divest itself of its despotic attributes and make common cause with the nation it has created.

The provision of this even-handed tyranny was the great contribution of the Normans to the making of England. They had no written law of their own, but to secure themselves they had to enforce order upon their schismatic subjects; and they were able to enforce it because, as military experts, they had no equals in that age. They could not have stood against a nation in arms; but the increasing cost of equipment and the growth of poor and landless classes among the Anglo-Saxons had transferred the military business of the nation into the hands of large landowning specialists; and the Anglo-Saxon warrior was no match for his Norman rival, either individually or collectively. His burh was inferior to the Norman castle, his shield and battle-axe to the weapons of the mailed and mounted knight; and he had none of the coherence that was forced upon the conquerors by the iron hand of William and by their situation amid a hostile people.

The problem for William and his companions was how to organize this military superiority as a means of orderly government, and this problem wore a twofold aspect. William had to control his barons, and his barons had to control their vassals. Their methods have been summed up in the phrase, the "feudal system," which William is still popularly supposed to have introduced into England. On the other hand, it has been humourously suggested that the feudal system was really introduced into England by Sir Henry Spelman, a seventeenth-century scholar. Others have maintained that, so far from feudalism being introduced from Normandy into England, it would be truer to say that feudalism was introduced from England into Normandy, and thence spread throughout France. These speculations serve, at any rate, to show that feudalism was a very vague and elusive system, consisting of generalizations from a vast number of conflicting data. Spelman was the first to attempt to reduce these data to a system, and his successors tended to forget more and more the exceptions to his rules. It is now clear that much that we call feudal existed in England before the Norman Conquest; that much of it was not developed until after the Norman period; and that at no time did feudalism exist as a completely rounded and logical system outside historical and legal text-books.

The political and social arrangements summed up in the phrase related primarily to the land and the conditions of service upon which it was held. Commerce and manufactures, and the organization of towns which grew out of them, were always exceptions to the feudal system; the monarchy saved itself, its sheriffs, and the shires to some extent from feudal influence; and soon it set to work to redeem the administration of justice from its clutches. In all parts of the country, moreover, there was land, the tenure of which was never feudalized. Generally, however, the theory was applied that all land was held directly or indirectly from the king, who was the sole owner of it, that there was no land without a lord, and that from every acre of land some sort of service was due to some one or other. A great deal of it

was held by military service; the tenant-in-chief of this land, who might be either a layman or an ecclesiastic, had to render this military service to the king, while the sub-tenants had to render it to the tenants-in-chief. When the tenant died his land reverted to the lord, who only granted it to the heir after the payment of a year's revenue, and on condition of the same service being rendered. If the heir were a minor, and thus incapable of rendering military service, the land was retained by the lord until the heir came of age; heiresses could only marry with the lord's leave some one who could perform his services. The tenant had further to attend the lord's court—whether the lord was his king or not—submit to his jurisdiction, and pay aids to the lord whenever he was captured and needed ransom, when his eldest son was made a knight, and when his eldest daughter married.

Other land was held by churchmen on condition of praying or singing for the soul of the lord, and the importance of this tenure was that it was subject to the church courts and not to those of the king. Some was held in what was called free socage, the terms of which varied; but its distinguishing feature seems to have been that the service, which was not military, was fixed, and that when it was performed the lord had no further hold on the tenant. The great mass of the population were, however, villeins, who were always at the beck and call of their lords, and had to do as much ploughing, sowing, and reaping of his land as he could make them. Theoretically they were his goods and chattels, who could obtain no redress against any one except in the lord's court, and none at all against him. They could not leave their land, nor marry, nor enter the church, nor go to school without his leave. All these forms of tenure and kinds of service, however, shaded off into one another, so that it is impossible to draw hard and fast lines between them. Any one, moreover, might hold different lands on different terms of service, so that there was little of caste in the English system; it was upon the land and not the person that the service was imposed; and William's

Domesday Book was not a record of the ranks and classes of the people, but a survey of the land, detailing the rents and service due from every part.

The local agency by which the Normans enforced these arrangements was the manor. The Anglo-Saxons had organized shires and hundreds, but the lowest unit, township or vill seems to have had no organization except, perhaps, for agricultural purposes. The Danegeld, which William imposed after the Domesday survey, was assessed on the hundreds, as though there were no smaller units from which it could be levied. But the hundred was found too cumbrous for the efficient control of local details; it was divided into manors, the Normans using for this purpose the germs of dependent townships which had long been growing up in England; and the agricultural organization of the township was dovetailed into the jurisdictional organization of the manor. The lord became the lord of all the land on the manor, the owner of a court which tried local disputes; but he rarely possessed that criminal jurisdiction in matters of life and death which was common in continental feudalism; and if he did, it was only by special royal grant, and he was gradually deprived of it by the development of royal courts of justice, which drew to themselves large parts of manorial jurisdiction.

These and other matters were reserved for the old courts of the shire and hundred, which the Norman kings found it advisable to encourage as a check upon their barons; for the more completely the natives and villagers were subjected to their lords, the more necessary was it for the king to maintain his hold upon their masters. For this reason William imposed the famous Salisbury oath. In France the sub-tenant was bound to follow and obey his immediate lord rather than the king. William was determined that every man's duty to the king should come first. Similarly, he separated church courts from the secular courts, in order that the former might be saved from the feudal influence of the latter; and he enforced the

ecclesiastical reforms of Hildebrand, especially the prohibition of the marriage of the clergy, lest they should convert their benefices into hereditary fiefs for the benefit of their children.

For the principles of heredity and primogeniture were among the strongest of feudal tendencies. Primogeniture had proved politically advantageous; and one of the best things in the Anglo-Saxon monarchy had been its avoidance of the practice, prevalent on the Continent, of kings dividing their dominions among their sons, instead of leaving all united to the eldest. But the principle of heredity, sound enough in national monarchy, was to prove very dangerous in the other spheres of politics. Office tended to become hereditary, and to be regarded as the private property of the family rather than a position of national trust, thus escaping national control and being prostituted for personal ends. The earldoms in England were so perverted; originally they were offices like the modern lords-lieutenancies of the shires; gradually they became hereditary titles. The only remedy the king had was to deprive the earls of their power, and entrust it to a nominal deputy, the sheriff. In France, the sheriff (*vice-comes*, *vicomte*) became hereditary in his turn, and a prolonged struggle over the same tendency was fought in England. Fortunately, the crown and country triumphed over the hereditary principle in this respect; the sheriff remained an official, and when viscounts were created later, in imitation of the French nobility, they received only a meaningless and comparatively innocuous title.

Some slight check, too, was retained upon the crown owing to a series of disputed successions to the throne. The Anglo-Saxon monarchy had always been in theory elective, and William had been careful to observe the form. His son, William II, had to obtain election in order to secure the throne against the claims of his elder brother Robert, and Henry I followed his example for similar reasons. Each had to make election promises in the

form of a charter; and election promises, although they were seldom kept, had some value as reminders to kings of their duties and theoretical dependence upon the electors. Gradually, too, the kings began to look for support outside their Norman baronage, and to realize that even the submerged English might serve as a makeweight in a balance of opposing forces. Henry I bid for London's support by the grant of a notable charter; for, assisted by the order and communications with the Continent fostered by Norman rule, commerce was beginning to flourish and towns to grow. London was already distancing Winchester in their common ambition to be the capital of the kingdom, and the support of it and of other towns began to be worth buying by grants of local government, more especially as their encouragement provided another check on feudal magnates. Henry, too, made a great appeal to English sentiment by marrying Matilda, the granddaughter of Edmund Ironside, and by revenging the battle of Hastings through a conquest of Normandy from his brother Robert, effected partly by English troops.

But the order, which the three Norman sovereigns evolved out of chaos, was still due more to their personal vigour than to the strength of the administrative machinery which they sought to develop; and though that machinery continued to work during the anarchy which followed, it could not restrain the feudal barons, when the crown was disputed between Henry's daughter Matilda and his nephew Stephen. The barons, indeed, had been more successful in riveting their baronial yoke on the people than the kings had been in riveting a monarchical yoke on the barons; and nothing more vividly illustrates the utter subjection of Anglo- Saxons than the fact that the conquerors could afford to tear each other to pieces for nineteen years (1135-1154) without the least attempt on the part of their subjects to throw off their tyranny. There was no English nation yet; each feudal magnate did what he pleased with his own without fear of royal or popular vengeance, and for once in English history, at any rate, the lords vindicated

their independence. The church was the only other body which profited by the strife; within its portals and its courts there was some law and order, some peace and refuge from the worldly welter; and it seized the opportunity to broaden its jurisdiction, magnify its law, exalt its privileges, and assert that to it belonged principally the right to elect and to depose sovereigns. Greater still would have been its services to civilization, had it been able to assert a power of putting down the barons from their castles and raising the peasantry from their bondage.

Deliverance could only come by royal power, and in Henry II, Matilda's son, Anjou gave England a greater king than Normandy had done in William the Bastard. Although a foreigner, who ruled a vast continental empire and spent but a fraction of his days on this side of the Channel, he stands second to none of England's makers. He fashioned the government which hammered together the framework of a national state. First, he gathered up such fragments of royal authority as survived the anarchy; then, with the conservative instincts and pretences of a radical, he looked about for precedents in the customs of his grandfather, proclaiming his intention of restoring good old laws. This reaction brought him up against the encroachments of the church, and the untoward incident of Becket's murder impaired the success of Henry's efforts to establish royal supremacy. But this supremacy must not be exaggerated. Henry did not usurp ecclesiastical jurisdiction; he wanted to see that the clerical courts did their duty; he claimed the power of moving them in this direction; and he hoped to make the crown the arbiter of disputes between the rival spiritual and temporal jurisdictions, realizing that the only alternative to this supreme authority was the arbitrament of war. He also contended that clergy who had been unfrocked in the clerical courts for murder or other crimes should be handed over as laymen to be further punished according to the law of the land, while Becket maintained that unfrocking was a sufficient penalty for

the first offence, and that it required a second murder to hang a former priest.

Next, he sought to curb the barons. He instituted scutage, by which the great feudatories granted a money payment instead of bringing with them to the army hordes of their sub-tenants who might obey them rather than the king; this enabled the king to hire mercenaries who respected him but not the feudatories. He cashiered all the sheriffs at once, to explode their pretensions to hereditary tenure of their office. By the assize of arms he called the mass of Englishmen to redress the military balance between the barons and the crown. By other assizes he enabled the owners and possessors of property to appeal to the protection of the royal court of justice: instead of trial by battle they could submit their case to a jury of neighbours; and the weapons of the military expert were thus superseded by the verdicts of peaceful citizens.

This method, which was extended to criminal as well as civil cases, of ascertaining the truth and deciding disputes by means of juratores, men sworn to tell the truth impartially, involved a vast educational process. Hitherto men had regarded the ascertainment of truth as a supernatural task, and they had abandoned it to Providence or the priests. Each party to a dispute had been required to produce oath- helpers or compurgators and each compurgator's oath was valued according to his property, just as the number of a man's votes is still proportioned to some extent to his possessions. But if, as commonly happened, both parties produced the requisite oath-helpers, there was nothing for it but the ordeal by fire or water; the man who sank was innocent, he who floated guilty; and the only rational element in the ritual was its supervision by the priests, who knew something of their parishioners' character. Military tenants, however, preferred their privilege of trial by battle. Now Henry began to teach men to rely upon their judgment; and by degrees a distinction was even made

between murder and homicide, which had hitherto been confounded because "the thought of man shall not be tried, for the devil himself knoweth not the thought of man."

In order to carry out his judicial reforms, Henry developed the *curia regis*, or royal court of justice. That court had simply been the court of the king's barons corresponding to the court of his tenants which every feudal lord possessed. Its financial aspect had already been specialized as the exchequer by the Norman kings, who had realized that finance is the first essential of efficient government. From finance Henry I had gone on to the administration of justice, because *justitia magnum emolumentum*, the administration of justice is a great source of profit. Henry II's zeal for justice sprang from similar motives: the more justice he could draw from the feudal courts to his own, the greater the revenue he would divert from his unruly barons into the royal exchequer. From the central stores of the *curia regis* he dispensed a justice that was cheaper, more expeditious, and more expert, than that provided by the local courts. He threw open its doors to all except villeins, he transformed it from an occasional assembly of warlike barons into a regular court of trained lawyers—mere servants of the royal household, the barons called them; and by means of justices in eyre he brought it into touch with all localities in the kingdom, and convinced his people that there was a king who meant to govern with their help.

These experts had a free hand as regards the law they administered. The old Anglo-Saxon customs which had done duty for law had degenerated into antiquated formalities, varying in almost every shire and hundred, which were perforce ignored by Henry's judges because they were incomprehensible. So much as they understood and approved they blended with principles drawn from the revived study of Roman law and with Frankish and Norman customs. The legal rules thus elaborated by the king's court were applied by the justices in eyre where-ever their circuits took

them, and became in time the common law of England, common because it admitted no local bars and no provincial prejudices. One great stride had been taken in the making of the English nation, when the king's court, trespassing upon local popular and feudal jurisdiction, dumped upon the Anglo-Saxon market the following among other foreign legal concepts—assize, circuit, suit, plaintiff, defendant, maintenance, livery, possession, property, probate, recovery, trespass, treason, felony, fine, coroner, court, inquest, judge, jury, justice, verdict, taxation, charter, liberty, representation, parliament, and constitution. It is difficult to over-estimate the debt the English people owe to their powers of absorbing imports. The very watchwords of progress and catchwords of liberty, from the trial by jury which was ascribed to Alfred the Great to the charter extorted from John, were alien immigrants. We call them alien because they were alien to the Anglo-Saxons; but they are the warp and woof of English institutions, which are too great and too complex to have sprung from purely insular sources.

In spite of the fierce opposition of the barons, who rebelled in 1173, and of disputes with his fractious children which embittered his closing years, Henry II had laid the foundations of national monarchy. But in completing one part of the Norman Conquest, namely, the establishment of royal supremacy over disorderly feudatories, he had modified the other, the arbitrary rule of the barons over the subject people. William had only conquered the people by the help of his barons; Henry II only crushed the barons with the help of lower orders and of ministers raised from the ranks. It was left for his sons to alienate the support which he had enlisted, and to show that, if the first condition of progress was the restraint of the barons, the second was the curbing of the crown. Their reigns illustrate the ineradicable defect of arbitrary rule: a monarch of genius creates an efficient despotism, and is allowed to create it, to deal with evils that yield to no milder treatment. His successors proceed to use that machinery for

personal ends. Richard I gilded his abuse of his father's power with the glory of his crusade, and the end afforded a plausible justification for the means he adopted. But John cloaked his tyranny with no specious pretences; his greed and violence spared no section of the community, and forced all into a coalition which extorted from him the Great Charter.

This famous document betrays its composite authorship; no section of the community entered the coalition without something to gain, and none went entirely unrewarded from Runnymede. But if Sir Henry Spelman introduced feudalism into England, his contemporary, Chief-justice Coke, invented Magna Carta: and in view of the profound misconceptions which prevail with regard to its character, it is necessary to insist rather upon its reactionary than upon its reforming elements. The great source of error lies in the change which is always insensibly, but sometimes completely, transforming the meaning of words. Generally the change has been from the concrete to the abstract, because in their earlier stages of education men find it very difficult to grasp anything which is not concrete. The word "liberty" affords a good illustration: in 1215 a "liberty" was the possession by a definite person or group of persons of very definite and tangible privileges, such as having a court of your own with its perquisites, or exemption from the duties of attending the public courts of the shire or hundred, of rendering the services or of paying the dues to which the majority were liable. The value of a "liberty" was that through its enjoyment you were not as other men; the barons would have eared little for liberties which they had to share with the common herd. To them liberty meant privilege and monopoly; it was not a general right to be enjoyed in common. Now Magna Carta is a charter not of "liberty," but of "liberties"; it guaranteed to each section of the coalition those special privileges which Henry II and his sons had threatened or taken away. Some of these liberties were dangerous obstacles to the common welfare—for instance the "liberty" of every lord of the manor to try all suits relating to property and

possession in his own manorial court, or to be punished by his fellow-barons instead of by the judges of the king's court. This was what the barons meant by their famous demand in Magna Carta that every man should be judged by his peers; they insisted that the royal judges were not their peers, but only servants of the crown, and their demands in these respects were reactionary proposals which might have been fatal to liberty as we conceive it.

Nor is there anything about trial by jury or "no taxation without representation" in Magna Carta. What we mean by "trial by jury" was not developed till long after 1215; there was still no national, but only class taxation; and the great council, which was to give its assent to royal demands for money, represented nobody but the tenants-in-chief of whom it was composed. All that the barons meant by this clause was that they, as feudal tenants-in-chief, were not to pay more than the ordinary feudal dues. But they left to the king, and they reserved to themselves, the right to tallage their villeins as arbitrarily as they pleased; and even where they seem to be protecting the villeins, they are only preventing the king from levying such judicial fines from their villeins as would make it impossible for those villeins to render their services to the lords. It was to be no affair of the king or nation if a lord exacted the uttermost farthing from his own chattels; legally, the villeins, who were the bulk of the nation, remained after Magna Carta, as before, in the position of a man's ox or horse to-day, except that there was no law for the prevention of cruelty to animals. Finally, the provision that no one was to be arrested until he had been convicted would, if carried out, have made impossible the administration of justice.

On the other hand, the provisions for the fixing of the court of common pleas at Westminster, for standard weights and measures, for the administration of law by men acquainted with English customs, and some

others were wholesome reforms. The first clause, guaranteeing that the church should be free from royal (not papal) encroachments, was sound enough when John was king, and the general restraint of his authority, even in the interests of the barons, was not an unmixed evil. But it is as absurd to think that John conceded modern liberty when he granted the charter of medieval liberties, as to think that he permitted some one to found a new religion when he licensed him to endow a new religious house (*novam religionem*); and to regard Magna Carta as a great popular achievement, when no vernacular version of it is known to have existed before the sixteenth century, and when it contains hardly a word or an idea of popular English origin, involves complete misunderstanding of its meaning and a serious antedating of English nationality.

At no time, indeed, did foreign influence appear more dominant in English politics than during the generation which saw Richard I surrender his kingdom to be held as a fief of the empire, and John surrender it to be held as a temporal fief of the papacy; or when, in the reign of Henry III, a papal legate, Gualo, administered England as a province of the Papal States; when a foreign freebooter was sheriff of six English shires; and when aliens held in their hands the castles and keys of the kingdom. It was a dark hour which preceded the dawn of English nationality, and so far there was no sign of English indignation at the bartering of England's independence. Resistance there was, but it came from men who were only a degree less alien than those whose domination they resented.

Yet a governing class, planted by Henry II, was striking root in English soil and drawing nourishment and inspiration from English feelings. It was reinforced by John's loss of Normandy, which compelled bi-national barons who held lands in both countries to choose between their French and English sovereigns; and those who preferred England became more English than they had been before. The French invasion of England, which followed

John's repudiation of the charter, widened the cleavage; and there was something national, if little that was English, in the government of Hubert de Burgh, and still more in the naval victory which Hubert and the men of the Cinque Ports won over the French in the Straits of Dover in 1217. But not a vestige of national feeling animated Henry III; and for twenty-five wearisome years after he had attained his majority he strove to govern England by means of alien relatives and dependents.

The opposition offered by the great council was baronial rather than national; the revolt in which it ended was a revolt of the half-breeds rather than a revolt of the English; and the government they established in 1258 was merely a legalized form of baronial anarchy. But there was this difference between the anarchy of Stephen's reign and that of Henry III's: now, when the foreigners fell out, the English began to come by their own. A sort of "young England" party fell foul of both the barons and the king; Simon de Montfort detached himself from the baronial brethren with whom he had acted, and boldly placed himself at the head of a movement for securing England for the English. He summoned representatives from cities and boroughs to sit side by side with greater and lesser barons in the great council of the realm, which now became an English parliament; and for the first time since the Norman Conquest men of the subject race were called up to deliberate on national affairs. It does not matter whether this was the stroke of a statesman's genius or the lucky improvisation of a party-leader. Simon fell, but his work remained; Prince Edward, who copied his tactics at Evesham, copied his politics in 1275 and afterwards at Westminster; and under the first sovereign since the Norman Conquest who bore an English name, the English people received their national livery and the seisin of their inheritance.

CHAPTER III

EMERGENCE OF THE ENGLISH PEOPLE

1272-1485

In 1265, simultaneously with the appearance of English townsfolk in parliament, an official document couched in the English tongue appeared like a first peak above the subsiding flood of foreign language. When, three generations back, Abbot Samson had preached English sermons, they were noted as exceptions; but now the vernacular language of the subject race was forcing its way into higher circles, and even into literary use. The upper classes were learning English, and those whose normal tongue was English were thrusting themselves into, or at any rate upon the notice of, the higher strata of society.

The two normal ranks of feudal society had in England naturally been French lords and English tillers of the soil; but commerce had never accommodated itself to this agricultural system, and the growth of trade, of towns, of other forms of wealth than land, tended concurrently to break down French and feudal domination. A large number of towns had been granted, or rather sold, charters by Richard I and John, not because those monarchs were interested in municipal development, but because they wanted money, and in their rights of jurisdiction over towns on the royal

domain they possessed a ready marketable commodity. The body which had the means to pay the king's price was generally the local merchant guild; and while these transactions developed local government, they did not necessarily promote popular self-government, because the merchant guild was a wealthy oligarchical body, and it might exercise the jurisdiction it had bought from the king in quite as narrow and harsh a spirit as he had done. The consequent quarrels between town oligarchies and town democracies do not, however, justify the common assumption that there had once been an era of municipal democracy which gradually gave way to oligarchy and corruption. Nevertheless, these local bodies were English, and legally their members had been villeins; and their experience in local government prepared them for admittance to that share in national government which the development of taxation made almost necessary.

Henry II's scheme of active and comprehensive administration, indeed, led by a natural sequence to the parliament of Edward I and further. The more a government tries to do, the more taxation it must impose; and the broadening of the basis of taxation led gradually to the broadening of the basis of representation, for taxation is the mother of representation. So long as real property only—that is to say, the ownership of land—was taxed, the great council contained only the great landowners. But Henry II had found it necessary to tax personalty as well, both clerical and lay, and so by slow steps his successors in the thirteenth century were driven to admit payers of taxes on personalty to the great council. This representative system must not be regarded as a concession to a popular demand for national self-government. When in 1791 a beneficent British parliament granted a popular assembly to the French Canadians, they looked askance and muttered, "*C'est une machine anglaise pour nous taxer*"; and Edward I's people would have been justified in entertaining the suspicion that it was their money he wanted, not their advice, and still less their control. He wished taxes to be voted in the royal palace at Westminster, just as Henry I

had insisted upon bishops being elected in the royal chapel. In the royal presence burgesses and knights of the shire would be more liberal with their constituents' money than those constituents would be with their own when there were neighbours to encourage resistance to a merely distant terror.

The representation people had enjoyed in the shire and hundred moots had been a boon, not because it enabled a few privileged persons to attend, but because by their attendance the mass were enabled to stay away. If the lord or his steward would go in person, his attendance exempted all his tenants; if he would not, the reeve and four "best" men from each township had to go. The "best," moreover, were not chosen by election; the duty and burden was attached to the "best" holdings in the township, and in the thirteenth century the sheriff was hard put to it to secure an adequate representation. This "suit of court" was, in fact, an obligatory service, and membership of parliament was long regarded in a similar light. Parliament did not clamour to be created; it was forced by an enlightened monarchy on a less enlightened people. A parliamentary "summons" had the imperative, minatory sound which now only attaches to its police court use; and centuries later members were occasionally "bound over" to attend at Westminster, and prosecuted if they failed. On one occasion the two knights for Oxfordshire fled the country on hearing of their election, and were proclaimed outlaws. Members of parliament were, in fact, the scapegoats for the people, who were all "intended" or understood to be present in parliament, but enjoyed the privilege of absence through representation. The greater barons never secured this privilege; they had to come in person when summoned, just as they had to serve in person when the king went to the wars. Gradually, of course, this attitude towards representation changed as parliament grasped control of the public purse, and with it the power of taxing its foes and sparing its friends. In other than financial matters it began to pay to be a member; and then it suited magnates not only to come in person but to represent the people in the Lower House, the social quality

of which developed with the growth of its power. Only in very recent times has the House of Commons again included such representatives as these whose names are taken from the official returns for the parliaments of Edward I: John the Baker, William the Tailor, Thomas the Summoner, Andrew the Piper, Walter the Spicer, Roger the Draper, Richard the Dyer, Henry the Butcher, Durant the Cordwainer, John the Taverner, William the Red of Bideford, Citizen Richard (Ricardus Civis), and William the priest's son.

The appearance of emancipated villeins side by side with earls and prelates in the great council of the realm is the most significant fact of thirteenth-century English history. The people of England were beginning to have a history which was not merely that of an alien government; and their emergence is traceable not only in language, literature, and local and national politics, but also in the art of war. Edward I discovered in his Welsh wars that the long-bow was more efficient than the weapons of the knight; and his grandson won English victories at Crecy and Poitiers with a weapon which was within the reach of the simple yeoman. The discovery of gunpowder and development of artillery soon proved as fatal to the feudal castle as the long-bow had to the mailed knight; and when the feudal classes had lost their predominance in the art of war, and with it their monopoly of the power of protection, both the reasons for their existence and their capacity to maintain it were undermined. They took to trade, or, at least, to money-making out of land, like ordinary citizens, and thus entered into a competition in which they had not the same assurance of success.

Edward I's greatness consists mainly in his practical appreciation of these tendencies. He was less original, but more fortunate in his opportunity, than Henry II. The time had come to set limits to the encroachments of feudalism and of the church, and Edward was able to impose them because, unlike Henry II, he had the elements of a nation at his back. He was not able to

sweep back these inroads, but he placed high-water marks along the frontiers of the state, and saw that they were not transgressed. He inquired into the titles by which the great lords held those portions of sovereign authority which they called their liberties; but he could take no further action when Earl Warenne produced a rusty sword as his effective title-deeds. He prohibited further subinfeudation by enacting that when an estate was sold, the purchaser should become the vassal of the vendor's lord and not of the vendor himself; and the social pyramid was thus rendered more stable, because its base was broadened instead of its height being increased. He expelled the Jews as aliens, in spite of their usefulness to the crown; he encouraged commerce by making profits from land liable to seizure for debt; and he defined the jurisdiction of the church, though he had to leave it authority over all matters relating to marriage, wills, perjury, tithes, offences against the clergy, and ecclesiastical buildings. He succeeded, however, in defiance of its opposition, in making church property liable to temporal taxation, and in passing a Mortmain Act which prohibited the giving of land to monasteries or other corporations without the royal licence.

By thus increasing the national control over the church in England, he made the church itself more national. It is sometimes implied that the church was equally national throughout the Middle Ages; but it is difficult to speak of a national church before there was a nation, or to see that there was anything really English in a church ruled by Lanfranc or Anselm, when there was not an Englishman on the bishops' bench, when the vast majority of Englishmen were legally incapable as villeins of even taking orders in the church, and when the vernacular language had been ousted from its services. But with the English nation grew an English church; Grosseteste denounced the dominance of aliens in the church, while Simon de Montfort denounced it in the state. It was, however, by secular authority that the English church was differentiated from the church abroad. It was the barons and not the bishops who had resisted the assimilation of English to Roman

canon law, and it was Edward I, and not Archbishops Peckham and Winchilsey, who defied Pope Boniface VIII. Archbishops, indeed, still placed their allegiance to the pope above that to their king.

The same sense of national and insular solidarity which led Edward to defy the papacy also inspired his efforts to conquer Wales and Scotland. Indeed, it was the refusal of the church to pay taxes in the crisis of the Scottish war that provoked the quarrel with Boniface. But, while Edward was successful in Wales, he encountered in Scotland a growing national spirit not altogether unlike that upon which Edward himself relied in England. Nor was English patriotism sufficiently developed to counteract the sectional feelings which took advantage of the king's embarrassments. The king's necessity was his subjects' opportunity, and the Confirmation of Charters extorted from him in 1297 stands, it is said, to the Great Charter of 1215 in the relation of substance to shadow, of achievement to promise. Edward, however, gave away much less than has often been imagined; he certainly did not abandon his right to tallage the towns, and the lustre of his motto, "Keep troth," is tarnished by his application to the pope for absolution from his promises. Still, he was a great king who served England well by his efforts to eliminate feudalism from the sphere of government, and by his insistence on the doctrine that what touches all should be approved by all. If to some catholic medievalists his reign seems a climax in the ascent of the English people, a climax to be followed by a prolonged recession, it is because the national forces which he fostered were soon to make irreparable breaches in the superficial unity of Christendom.

The miserable reign of his worthless successor, Edward II, illustrated the importance of the personal factor in the monarchy, and also showed how incapable the barons were of supplying the place of the feeblest king. Both parties failed because they took no account of the commons of England or of national interests. The leading baron, Thomas of Lancaster, was

executed; Edward II was murdered; and his assassin, Mortimer, was put to death by Edward III, who grasped some of the significance of his grandfather's success and his father's failure. He felt the national impulse, but he twisted it to serve a selfish and dynastic end. It must not, however, be supposed that the Hundred Years' War originated in Edward's claim to the French throne; that claim was invented to provide a colourable pretext for French feudatories to fight their sovereign in a war which was due to other causes. There was Scotland, for instance, which France wished to save from Edward's clutches; there were the English possessions in Gascony and Guienne, from which the French king hoped to oust his rival; there were bickerings about the lordship of the Narrow Seas which England claimed under Edward II; and there was the wool-market in the Netherlands which England wanted to control. The French nation, in fact, was feeling its feet as well as the English; and a collision was only natural, especially in Guienne and Gascony. Henry II had been as natural a sovereign in France as in England, because he was quite as much a Frenchman as an Englishman. But since then the kings of England had grown English, and their dominion over soil which was growing French became more and more unnatural. The claim to the throne, however, gave the struggle a bitter and fruitless character; and the national means, which Edward employed to maintain the war, only delayed its inevitably futile end. It was supported by wealth derived from national commerce with Flanders and Gascony; national armies were raised by enlistment to replace the feudal levy; the national long-bow and not the feudal war-horse won the battles of Crecy and Poitiers; and command of the sea secured by a national navy enabled Edward to win the victory of Sluys and complete the reduction of Calais. War, moreover, required extra supplies in unprecedented amounts, and they took the form of national taxes, voted by the House of Commons, which supplemented and then supplanted the feudal aids as the mainstay of royal finance.

Control of these supplies brought the House of Commons into constitutional prominence. It was no mere Third Estate after the continental model, for knights of the shire sat side by side with burgesses and citizens; and knights of the shire were the lesser barons, who, receiving no special writ of summons, cast in their lot with the Lower and not with the Upper House. Parliament had separated into two Houses in the reign of Edward II—for Edward I's Model Parliament had been a Single Chamber, though doubtless it voted by classes—but the House of Commons represented the *communities* of the realm, and not its lower orders; or rather, it concentrated all these communities—shires, cities, and boroughs—and welded them into a single community of the realm. It thus created a nucleus for national feeling, which gradually cured the localism of early England and the sectionalism of feudal society; and it developed an *esprit de corps* which counteracted the influence of the court. The advantages which the crown may have hoped to secure by bringing representatives up to Westminster, and thus detaching them from their basis of local resistance, were frustrated by the solidarity and consistency which grew up among members of parliament; and this growing national consciousness supplanted local consciousness as the safeguard of constitutional liberty.

Most of the principles and expedients of representative government were adumbrated during this first flush of English nationalism, which has been called "the age of the Commons." The petitions, by which alone parliament had been able to express its grievances, were turned into bills which the crown had to answer, not evasively, but by a thinly veiled "yes" or "no." The granting of taxes was made conditional upon the redress of grievances; the crown finally lost its right to tallage; and its powers of independent taxation were restricted to the levying of the "ancient customs" upon dry goods and wines. If it required more than these and than the proceeds from the royal domains, royal jurisdiction, and diminishing feudal aids, it had to apply to parliament. The expense of the Hundred Years' War rendered such

applications frequent; and they were used by the Commons to increase their constitutional power. Attempts were made with varying success to assert that the ministers of the crown, both local and national, were responsible to parliament, and that money-grants could only originate in the House of Commons, which might appropriate taxes to specific objects and audit accounts so as to see that the appropriation was carried out.

The growth of national feeling led also to limitations of papal power. Early in Edward III's reign a claim was made that the king, in virtue of his anointing at coronation, could exercise spiritual jurisdiction, and the statutes of *Praemunire* and *Provisors* prohibited the exercise in England of the pope's powers of judicature and appointment to benefices without the royal licence, though royal connivance and popular acquiescence enabled the papacy to enjoy these privileges for nearly two centuries longer. National feeling was particularly inflamed against the papacy because the "Babylonish captivity" of the pope at Avignon made him appear an instrument in the hands of England's enemy, the king of France; and that captivity was followed by the "Great Schism," during which the quarrels of two, and then three, popes, simultaneously claiming to be the only head of the church on earth, undermined respect for their office. These circumstances combined with the wealth and corruption of the church to provoke the Lollard movement, which was the ecclesiastical aspect of the democratic tendencies of the age.

One of the most striking illustrations of popular development was the demand for vernacular versions of the Scriptures, which Wycliffe met by his translation of the Bible. At the same time Langland made literature for the common people out of their common lot, a fact that can hardly be understood unless we remember that villeins, although they might be fined by their lords for so doing, were sending their sons in increasing numbers to schools, which were eventually thrown open to them by the Statute of

Labourers in 1406. The fact that Chaucer wrote in English shows how the popular tongue was becoming the language of the court and educated classes. Town chronicles and the records of guilds and companies began to be written in English; legal proceedings are taken in the same tongue, though the law-reports continued to be written in French; and after a struggle between French and Latin, even the laws are drawn up in English. That the church persisted, naturally enough, in its usage of catholic Latin, tended to increase its alienation from popular sympathies. Wycliffe represented this national feeling when he appealed to national authority to reform a corrupt Catholic church, and when he finally denied that power of miraculous transubstantiation, upon which ultimately was based the claim of the priesthood to special privileges and estimation. But his association with the extreme forms of social agitation, which accompanied the Lollard movement, is less clear.

Before the end of Edward III's reign the French war had produced a crop of disgrace, disorder, and discontent. Heavy taxation had not availed to retain the provinces ceded to England at the Treaty of Bretigny in 1360, and hordes of disbanded soldiery exploited the social disorganization produced by the Black Death; a third of the population was swept away, and many villeins deserted their land to take up the more attractive labour provided in towns by growing crafts and manufactures. The lords tried by drastic measures to exact the services from villeins which there were not enough villeins to perform; and the imposition of a poll-tax was the signal for a comprehensive revolt of town artisans and agricultural labourers in 1381. Its failure did not long impede their emancipation, and the process of commuting services for rent seems to have gone on more rapidly in the first half of the fifteenth than in the fourteenth century. But the passionate preaching of social equality which inflamed the minds of the insurgents produced no further results; in their existing condition of political

education, the peasant and artisan had perforce to be content with watching the struggles of higher classes for power.

Richard II, who had succeeded his grandfather in 1377, reaped the whirlwind of Edward's sowing, not so much in the consequences of the war as in the fruits of his peerage policy. The fourteenth century which nationalized the Commons, isolated the Lords; and the baronage shrank into the peerage. The word "peer" is not of English origin, nor has it any real English meaning. Its etymological meaning of "equal" does not carry us very far; for a peer may be equal to anything. But the peers, consisting as they do of archbishops, dukes, marquises, earls, viscounts, bishops, and barons, of peers who are lords of parliament and of peers who are neither lords of parliament nor electors to the House of Commons, are not even equal to one another; and certainly they would deny that other people were equal to them. The use of the word in its modern sense was borrowed from France in the fourteenth century; but in France it had a meaning which it could not have in England. A peer in France claimed equality with the crown; that is to say, he was the ruler of one of the great fiefs which had been equal to the county of Paris when the count of Paris had been elected by his equals king of France. If the king of Wessex had been elected king of England by the other kings of the Heptarchy, and if those other kings had left successors, those successors might have claimed to be peers in a real sense. But they had no such pretensions; they were simply greater barons, who had been the tenants-at-will of their king.

The barons, however, of William I or Henry II had been a large class of comparatively small men, while the peers of Richard II were a small class of big men. The mass of lesser barons had been separated from the greater barons, and had been merged in the landed gentry who were represented by the knights of the shire in the House of Commons. The greater barons were summoned by special and individual writs to the House of Lords; but there

was nothing to fetter the crown in its issue of these writs. The fact that a great baron was summoned once, did not mean that he need be summoned again, and the summons of the father did not involve the summons of his eldest son and successor. But gradually the greater barons made this summons hereditary and robbed the crown of all discretion in the matter, though it was not till the reign of Charles I that the House of Lords decided in its own favour the question whether the crown had the power to refuse a writ of summons to a peer who had once received one.

With this narrowing of the baronage, the barons lost the position they had held in the thirteenth century as leaders of constitutional reform, and this part was played in the fourteenth century by the knights of the shire. The greater barons devoted themselves rather to family than to national politics; and a system of breeding-in amalgamated many small houses into a few great ones. Thomas of Lancaster held five earldoms; he was the rival of Edward II, and might well be called a peer of the crown. Edward III, perceiving the menace of these great houses to the crown, tried to capture them in its interests by means of marriages between his sons and great heiresses. The Black Prince married the daughter of the Earl of Kent; Lionel became Earl of Ulster in the right of his wife; John of Gaunt married the heiress of Lancaster and became Duke of Lancaster; Thomas of Woodstock married the heiress of the Bohuns, Earls of Essex and of Hereford; the descendants of Edmund, Duke of York, absorbed the great rival house of Mortimer; and other great houses were brought within the royal family circle. New titles were imported from abroad to emphasize the new dignity of the greater barons. Hitherto there had been barons only, and a few earls whose dignity was an office; now by Edward III and Richard II there were added dukes, marquises, and viscounts, and England might boast of a peerage nearly, if not quite, as dangerous to the crown as that of France. For Edward's policy failed: instead of securing the great houses in the interests

of the crown, it degraded the crown to the arena of peerage rivalries, and ultimately made it the prize of noble factions.

Richard II was not the man to deal with these over-mighty subjects. He may perhaps be described as a "New" monarch born before his time. He had some of the notions which the Tudors subsequently developed with success; but he had none of their power and self-control, and he was faced from his accession by a band of insubordinate uncles. Moreover, it needed the Wars of the Roses finally to convince the country of the meaning of the independence of the peerage. Richard fell a victim to his own impatience and their turbulence. Henry IV came to the throne as the king of the peers, and hardly maintained his uneasy crown against their rival ambitions. The Commons, by constitutional reform, reduced almost to insignificance a sovereignty which the Lords could not overthrow by rebellion; and by insisting that the king should "live of his own," without taxing the country, deprived him of the means of orderly government. Their ideal constitution approached so nearly to anarchy that it is impossible not to suspect collusion between them and the Lords. The church alone could Henry placate by passing his statute for burning heretics.

Henry V took refuge from this domestic imbroglio in a spirited foreign policy, and put forward a claim more hollow than Edward III's to the throne of France. There were temptations in the hopeless condition of French affairs which no one but a statesman could have resisted; Henry, a brilliant soldier and a bigoted churchman, was anything but a statesman; and the value of his churchmanship may be gauged from the fact that he assumed the insolence of a crusader against a nation more catholic than his own. He won a deplorably splendid victory at Agincourt, married the French king's daughter, and was crowned king of France. Then he died in 1422, leaving a son nine months old, with nothing but success in the impossible task of

subduing France to save the Lancastrian dynasty from the nemesis of vaulting ambition abroad and problems shelved at home.

Step by step the curse of war came home to roost. Henry V's abler but less brilliant brother, Bedford, stemmed till his death the rising tide of English faction and French patriotism. Then the expulsion of the English from France began, and a long tale of failure discredited the government. The nation had spirit enough to resent defeat, but not the means to avoid it; and strife between the peace party and the war party in the government resolved itself into a faction fight between Lancastrians and Yorkists. The consequent impotence of the government provoked a bastard feudal anarchy, maintained by hirelings instead of liegemen. Local factions fought with no respect for the law, which was administered, if at all, in the interests of one or other of the great factions at court; and these two great factions fostered and organized local parties till the strife between them grew into the Wars of the Roses.

Those wars are perhaps the most puzzling episode in English history. The action of an organized government is comparatively easy to follow, but it is impossible to analyze the politics of anarchy. The Yorkist claim to the throne was not the cause of the war; it was, like Edward III's claim to the throne of France, merely a matter of tactics, and was only played as a trump card. No political, constitutional, or religious principle was at stake; and the more peaceable, organized parts of the community took little share in the struggle. No great battle was fought south of the Thames, and no town stood a siege. It looks as though the great military and feudal specialists, whose power lay principally on the Borders, were engaged in a final internecine struggle for the control of England, in somewhat the same way as the Ostmark or East Border of the Empire became Austria, and the Nordmark or North Border became Prussia, and in turn dominated Germany. Certainly the defeat of these forces was a victory for southern and

eastern England, and for the commercial and maritime interests on which its growing wealth and prosperity hung; and the most important point in the wars was not the triumph of Edward IV over the Lancastrians in 1461, but his triumph over Warwick, the kingmaker, ten years later. The New Monarchy has been plausibly dated from 1471; but Edward IV had not the political genius to work out in detailed administration the results of the victory which he owed to his military skill, and Richard III, who possessed the ability, made himself impossible as a king by the crimes he had to commit in order to reach the throne. The reconstruction of English government on a broader and firmer national basis was therefore left to Henry VII and the House of Tudor.

CHAPTER IV

THE PROGRESS OF NATIONALISM

1485-1603

England had passed through the Middle Ages without giving any sign of the greatness which awaited its future development. Edward III and Henry V had won temporary renown in France, but English sovereigns had failed to subjugate the smaller countries of Scotland and Ireland, which were more immediately their concern. Wycliffe and Chaucer, with perhaps Roger Bacon, are the only English names of first importance in the realms of medieval thought and literature, unless we put Bede (673- 735) in the Middle Ages; for insular genius does not seem to have flourished under ecumenical inspiration; and even Wycliffe and Chaucer may be claimed as products of the national rather than of the catholic spirit. But with the transition from medieval to modern history, the conditions were altered in England's favour. The geographical expansion of Europe made the outposts of the Old World the *entrepôts* for the New; the development of navigation and sea-power changed the ocean from the limit into the link of empires; and the growth of industry and commerce revolutionized the social and financial foundations of power. National states were forming; the state which could best adapt itself to these changed and changing conditions would outdistance its rivals; and its capacity to adapt itself to them would

largely depend on the strength and flexibility of its national organization. It was the achievement of the New Monarchy to fashion this organization, and to rescue the country from an anarchy which had already given other powers the start in the race and promised little success for England.

Henry VII had to begin in a quiet, unostentatious way with very scanty materials. With a bad title and many pretenders, with an evil heritage of social disorder, he must have been sorely tempted to indulge in the heroics of Henry V. He followed a sounder business policy, and his reign is dull, because he gave peace and prosperity at home without fighting a battle abroad. His foreign policy was dictated by insular interests regardless of personal glory; and the security of his kingdom and the trade of his people were the aims of all his treaties with other powers. At home he carefully depressed the over-mighty subjects who had made the Wars of the Roses; he kept down their number with such success that he left behind him only one English duke and one English marquis; he limited their retainers, and restrained by means of the Star Chamber their habits of maintaining lawbreakers, packing juries, and intimidating judges. By a careful distribution of fines and benevolences he filled his exchequer without taxing the mass of his people; and by giving office to ecclesiastics and men of humble origin he both secured cheaper and more efficient administration, and established a check upon feudal influence. He was determined that no Englishman should build any castle walls over which the English king could not look, and that, as far as possible, no private person should possess a franchise in which the king's writ did not run. He left to his son, Henry VIII, a stable throne and a united kingdom.

The first half of Henry VIII's reign left little mark on English history. Wolsey played a brilliant but essentially futile part on the diplomatic stage, where the rivalry and balance of forces between the Emperor Charles V and Francis I of France helped him to pose as the arbiter of Christendom. But he

obtained no permanent national gains; and the final result of his foreign policy was to make the emperor master of the papacy at the moment when Henry wanted the pope to annul his marriage with the emperor's aunt, Catherine of Aragon. Henry desired a son to succeed him and to prevent the recurrence of dynastic wars; he had only a daughter, Mary, and no woman had yet ruled or reigned in England. The death of all his male children by Catherine convinced him that his marriage with his deceased brother Arthur's widow was invalid; and his passion for Anne Boleyn added zest to his suit for a divorce. The pope could not afford to quarrel with Charles V, who cared little, indeed, for the cause of his aunt, but much for his cousin Mary's claim to the English throne; and in 1529 Henry began the process, completed in the acts of Annates, Appeals, and Supremacy, by which England severed its connexion with Rome, and the king became head of an English church.

It is irrational to pretend that so durable an achievement was due to so transient a cause as Henry's passion for Anne Boleyn or desire for a son; vaster, older, and more deeply seated forces were at work. In one sense the breach was simply the ecclesiastical consummation of the forces which had long been making for national independence, and the religious complement of the changes which had emancipated the English state, language, and literature from foreign control.

The Catholic church naturally resisted its disintegration, and the severance was effected by the secular arms of parliament and the crown. The nationalism of the English church was the result rather than the cause of the breach with Rome, and its national characteristics—supreme governance by the king, the disappearance of cosmopolitan religious orders, the parliamentary authorization of services in the vernacular, of English books of Common Prayer, of English versions of the Bible, and of the Thirty-nine Articles—were all imposed by parliament after, and not adopted

by the church before, the separation. There were, indeed, no legal means by which the church in England could have accomplished these things for itself; there were the convocations of Canterbury and York, but these were two subordinate provinces of the Catholic church; and, whatever may be said for provincial autonomy in the medieval church, the only marks of national autonomy were stamped upon it by the state. York was more independent of Canterbury than Canterbury was of Rome; and the unity as well as the independence of the national church depends upon the common subjection of both its provinces to the crown. This predominance of state over church was a consequence of its nationalization; for where the boundaries of the two coincide, the state generally has the upper hand. The papacy was only made possible by the fall of the Western Empire; in the Eastern Empire the state, so long as it survived, controlled the church; and the independence of the medieval church was due to its catholicity, while the state at best was only national. It was in defence of the catholicity, as opposed to the nationalism, of the church that More and Fisher went to the scaffold in 1535, and nearly the whole bench of bishops was deprived in 1559. Henry VIII and Elizabeth were bent on destroying the medieval discord between the Catholic church and the national state. Catholicity had broken down in the state with the decline of the empire, and was fast breaking down in the church; nationalism had triumphed in the state, and was now to triumph in the church.

In this respect the Reformation was the greatest achievement of the national state, which emerged from the struggle with no rival for its omnicompetent authority. Its despotism was the predominant characteristic of the century, for the national state successfully rid itself of the checks imposed, on the one hand by the Catholic church, and on the other by the feudal franchises. But the supremacy was not exclusively royal; parliament was the partner and accomplice of the crown. It was the weapon which the Tudors employed to pass Acts of Attainder against feudal magnates and

Acts of Supremacy against the church; and men complained that despotic authority had merely been transferred from the pope to the king, and infallibility from the church to parliament. "Parliament," wrote an Elizabethan statesman, "establisheth forms of religion...."

But while Englishmen on the whole were pretty well agreed that foreign jurisdiction was to be eliminated, and that Englishmen were to be organized in one body, secular and spiritual, which might be called indifferently a state-church or a church-state, there was much more difference of opinion with regard to its theological complexion. It might be Catholic or it might be Protestant in doctrine; and it was far more difficult to solve this religious problem than to effect the severance from Rome. There were, indeed, many currents in the stream, some of them cross-currents, some political, some religious, but all mingling imperceptibly with one another. The revolt of the nation against a foreign authority is the most easily distinguished of these tendencies; another is the revolt of the laity against the clerical specialist. The church, it must be remembered, was often regarded as consisting not of the whole body of the faithful, but simply of the clergy, who continued to claim a monopoly of its privileges after they had ceased to enjoy a monopoly of its intelligence and virtue. The Renaissance had been a new birth of secular learning, not a revival of clerical learning. Others besides the clergy could now read and write and understand; town chronicles took the place of monastic chronicles, secular poets of divines; and a middle class that was growing in wealth and intelligence grew also as impatient of clerical as it had done of military specialists. The essential feature of the reformed services was that they were compiled in the common tongue and not in the Latin of ecclesiastical experts, that a Book of *Common Prayer* was used, that congregational psalm-singing replaced the sacerdotal solo, and a communion was substituted for a priestly miracle. Religious service was to be something rendered by the people themselves, and not performed for their benefit by the priest.

Individual participation and private judgment in religion were indeed the essence of Protestantism, which was largely the religious aspect of the revolt of the individual against the collectivism of the Middle Ages. The control exercised by the church had, however, been less the expression of the general will than the discipline by authority of masses too illiterate to think for themselves. Attendance at public worship would necessarily be their only form of devotion. But the general emancipation of servile classes and spread of intelligence by the Renaissance had led to a demand for vernacular versions of the Scriptures and to a great deal of private and family religious exercise, without which there could have been no Protestant Reformation. Lollardy, which was a violent outburst of this domestic piety, was never completely suppressed; and it flamed out afresh when once political reasons, which had led the Lancastrians to support the church, induced the Tudors to attack it.

Most spiritual of all the factors in the Reformation was the slow and partial emancipation of men's minds from the materialism of the Middle Ages. It may seem bold, in face of the vast secularization of church property and other things in the sixteenth century, to speak of emancipation from materialism. Nevertheless, there was a distinct step in the progress of men's minds from that primitive condition of intelligence in which they can only grasp material symbols of the real conception. Rudimentary jurisprudence had confessed its inability to penetrate men's thoughts and differentiate their actions according to their motives; there had been a time when possession had seemed more real than property, and when the transference of a right was incomprehensible without the transference of its concrete symbols. There could be no gift without its manual conveyance, no marriage without a ring, no king without a coronation. Many of these material swaddling-clothes remain and have their value. A national flag stimulates loyalty, gold lace helps the cause of discipline. Bishop Gardiner, in the sixteenth century, defended images on the ground that they were

documents all could read, while few could read the Scriptures. To unimaginative men there could be no priest without vestments, no worship without ritual, no communion of the Spirit without the presence of the Body, no temple not made with hands, no God without an image. To break the image, to abolish the vestments and the ritual, to deny the transubstantiation, was to destroy the religion and reverence of the masses, who could only grasp matter and worship with their senses.

Protestantism was, therefore, not a popular religion, and to thousands of educated men it did not appeal. Few people are so immaterialistic that they can dispense with symbols; many can idealize symbols in which others see nothing but matter; and only those devoid of artistic perception deny the religious value of sculpture, painting, and music. Protestantism might be an ideal religion if men were compounded of pure reason; being what they were, many adopted it because they were impervious to artistic influence or impatient of spiritual discipline. It will hardly do to divide the nation into intelligent Protestants and illiterate Catholics: the point is that the somewhat crude symbolism which had satisfied the cravings of the average man had ceased to be sufficient for his newer intelligent needs; he demanded either a higher symbolism or else as little as possible. Some felt the symbol a help, others felt it a hindrance to the realization of the ideal; so some men can see better with, others without, spectacles, but that fact would hardly justify their abolition.

Henry VIII confined his sympathies to the revolt of the nation against Rome and the revolt of the laity against the priests. The former he used to make himself Supreme Head of the church, the latter to subdue convocation and despoil the monasteries. All civilized countries have found it expedient sooner or later to follow his example with regard to monastic wealth; and there can be little doubt that the withholding of so much land and so many men and women from productive purposes impeded the material prosperity

of the nation. But the devotion of the proceeds to the foundation of private families, instead of to educational endowment, can only be explained and not excused by the exigencies of political tactics. His real services were political, not religious. He taught England a good deal of her insular confidence; he proclaimed the indivisible and indisputable sovereignty of the crown in parliament; he not only incorporated Wales and the county palatine of Chester with England, and began the English re-organization of Ireland, but he united England north with England south of the Humber, and consolidated the Borders, those frayed edges of the national state. He carried on the work of Henry II and Edward I, and by subduing rival jurisdictions stamped a final unity on the framework of the government.

The advisers of Edward VI embarked on the more difficult task of making this organization Protestant; and the haste with which they, and especially Northumberland, pressed on the change provoked first rebellion in 1549 and then reaction under Mary. They were also confronted with social discontent arising out of the general substitution of competition for custom as the ruling economic principle. Capital amassed in trade was applied to land, which began to be treated as a source of money, not a source of men. Land held in severalty was found more profitable than land held in common, large estates than small holdings, and wool-growing than corn-growing. Small tenants were evicted, small holdings consolidated, commons enclosed, and arable land converted to pasture. The mass of the agricultural population became mere labourers without rights of property on the soil they tilled; thousands lost employment and swelled the ranks of sturdy beggars; and sporadic disorder came to a head in Kett's rebellion in Norfolk in 1549, which was with difficulty suppressed. But even this highhanded expropriation of peasants by their landlords stimulated national development. It created a vagrant mobile mass of labour, which helped to meet the demands of new industrial markets and to feed English oversea enterprise. A race that sticks like a limpet to the soil may be happy but

cannot be great; and the ejection of English peasants from their homesteads saved them from the reproach of home-keeping youths that they have ever homely wits.

Mary's reign, however, checked the national impulse towards expansion, and thrust England for the moment back into the Middle Ages. First she put herself and her kingdom under the aegis of Spain, to which in heart and mind she belonged, by marrying Philip II. Then with his assistance she restored the papal jurisdiction, and England surrendered its national independence. Those who repudiated their foreign jurisdiction were naturally treated as contumacious by the papal courts in England and sent to the stake; and English adventurers were prohibited, in the interests of Spain and Portugal, from trespassing in the New World. Finally England was plunged into war with France in order to help Philip, and lost Calais for its pains. Mary's reign showed that in a sovereign good intentions and upright conversation exaggerate rather than redeem the evil effects of bigotry and blindness. She had, however, made it impossible for any successor to perpetuate in England the Roman jurisdiction and the patronage of Spain.

Elizabeth was a sovereign more purely British in blood than any other since the Norman Conquest; and to her appropriately fell the task of completing her country's national independence. Henry VIII's Act of Supremacy and Edward VI's of Uniformity were restored with some modifications, in spite of the opposition of the Catholic bishops, who contended that a nation had no right to deal independently with ecclesiastical matters, and suffered deprivation and imprisonment rather than recognize a schismatic national church. Elizabeth rejected Philip's offers of marriage and paid no heed to his counsels of state. She scandalized Catholic Europe by assisting the revolted Scots to expel the French from North Britain; and revenged the contempt, in which England had been held in Mary's reign, by supporting with impunity the Dutch against Philip II and

the Huguenots against the king of France. She concealed her aggressions with diplomatic artifice and caution; but at heart she was with her people, who lost no opportunity, in their new-found confidence, of plundering and insulting the Catholic powers in their way.

The astonishing success of England amid the novel conditions of national rivalry requires some attempt at explanation. It seems to have been due to the singular flexibility of the English character and national system, and to the consequent ease with which they adapted themselves to changing environment. Indeed, whatever may be the case at present, a survey of English history suggests that the conventional stolidity ascribed to John Bull was the least obvious of his characteristics; and even to-day the only people who never change their mind at general elections are the mercurial Celts. Certainly England has never suffered from that rigidity of social system which has hampered in the past the adaptability of its rivals. Even in feudal times there was little law about status; and when the customary arrangement of society in two agricultural classes of landlord and tenant was modified by commerce, capitalism, and competition, nobles adapted themselves to the change with some facility. They took to sheep-farming and commercial speculations, just as later on they took to keeping dairy-shops. It is the smallness rather than the source of his profits that excites social prejudice against the shopkeeper in England. On the Continent, however, class feeling prevented the governing classes from participating in the expansion of commerce. German barons, for instance, often with only a few florins a year income, could not supplement it by trade; all they could do was to rob the traders, robbery being a thoroughly genteel occupation. Hence foreign governments were, as a rule, less alive and less responsive to the commercial interests of their subjects. Philip II trampled on commercial opinion in a way no English sovereign could have done. Indeed, complaints were raised in England at the extent to which the commercial classes had the ear of parliament and the crown; since the accession of Henry VIII, it

was said in 1559, they had succeeded by their secret influence in procuring the rejection of every bill they thought injurious to their interests.

There was no feeling of caste to obstruct the efficiency of English administration. The nobility were separated from the nation by no fixed line; there never was in England a nobility of blood, for all the sons of a noble except the eldest were commoners. And while they were constantly sinking into the mass of the nation, commoners frequently rose to the rank of nobility. Before the end of the fourteenth century wealth derived from trade had become an avenue to the House of Lords. The justices of the peace, on whom the Tudors relied for local administration, were largely descended from successful city men who had, like the Walsinghams, planted themselves out in the country; and Elizabeth herself was great-great-granddaughter of a London mayor. This social elasticity enabled the government to avail itself of able men of all classes, and the efficiency of Tudor administration was mainly due to these recruits, whose genius would have been elsewhere neglected. Further, it provided the government with agents peculiarly fitted by training and knowledge to deal with the commercial problems which were beginning to fill so large a sphere in politics; and finally, it rendered the government singularly responsive to the public opinion of the classes upon whose welfare depended the expansion of England.

Englishmen likewise took to the sea, when the sea became all-important, as readily as they took to trade. English command of the Narrow Seas had laid France open to the invasions of Edward III and Henry V, and had checked the tide of French reconquest before the walls of Calais. English piracy in the Channel was notorious in the fifteenth century, and in the sixteenth it attained patriotic proportions. Henry VII had encouraged Cabot's voyage to Newfoundland, but the papal partition of new-found lands between Spain and Portugal barred to England the door of legitimate,

peaceful expansion; and there can be little doubt that this prohibition made many converts to Protestantism among English seafaring folk. Even Mary could not prevent her subjects from preying on Spanish and Portuguese commerce and colonies; and with Elizabeth's accession preying grew into a national pastime. Hawkins broke into Spanish monopoly in the West Indies, Drake burst into their Pacific preserves, and circumvented their defences; and a host of followers plundered nearly every Spanish and Portuguese colony.

At last Philip was provoked into a naval war for which the English were and he was not prepared. Spanish rigidity embraced the Spanish marine as well as Spanish theology. Clinging to Mediterranean and medieval traditions, Spain had failed to realize the conditions of sea-power or naval tactics. England, on the other hand, had, largely under the inspiration of Henry VIII, adapted its navy to oceanic purposes. A type of vessel had been evolved capable of crossing the ocean, of manoeuvring and of fighting under sail; to Drake the ship had become the fighting unit, to the Duke of Medina Sidonia a ship was simply a vehicle for soldiers, and a sea-fight was simply a land-fight on sea. The crowning illustration of Spain's incapacity to adapt itself to new conditions is perhaps the fact that only a marquis or duke could be made a Spanish admiral.

England had disposed of similar claims to political and military authority in 1569, when medieval feudalism made its last bid for the control of English policy. For ten years Elizabeth had been guided by Sir William Cecil, a typical "new man" of Tudor making, who hoped to wean the common people from dependence upon their lords, and to complete the destruction of feudal privileges which still impeded the action of national sovereignty. The flight of Mary Queen of Scots into England in 1568 provided a focus for noble discontent with Cecil's rule, and the northern earls rebelled in 1569. The rebellion was easily suppressed, but its failure

did not deter the Duke of Norfolk, the earls' accomplice, from joining Ridolfi's plot with similar ends. He was brought to the block in 1572, and in him perished the last surviving English duke. For more than half a century England had to do its best—defeat the Spanish Armada, conquer Ireland, circumnavigate the globe, lay the foundations of empire, produce the literature of the Elizabethan age—without any ducal assistance. It was left for James I, who also created the rank of baronet in order to sell the title (1611), to revive the glories of ducal dignity in the persons of Ludovic Stuart, Duke of Richmond, and George Villiers, Duke of Buckingham (1623).

Cecil's drastic methods of dealing with the opposition lords left the door of government open to men like Walsingham, who were determined to give full play to the new forces in English politics. Discontented reactionaries were reduced to impotent silence, or driven abroad to side openly with the enemy. Pius V's bull excommunicating and deposing Elizabeth (1570) shattered in a similar way the old Catholic party. The majority acquiesced in the national religion; the extremists fled to become conspirators at foreign courts or Jesuit and missionary priests. The antagonism between England and Spain in the New World did more, perhaps, than Spanish Catholicism to make Philip the natural patron of these exiles and of their plots against the English government; and as Spain and England drew apart, England and France drew together. In 1572 a defensive alliance was formed between them, and there seemed a prospect of their co-operation to drive the Spaniards out of the Netherlands. But Catholic France resented this Huguenot policy, and the massacre of St. Bartholomew put a violent end to the scheme, while Elizabeth and Philip patched up a truce for some years. There could, however, be no permanent compromise, on the one hand, between Spanish exclusiveness and the determination of Englishmen to force open the door of the New World and, on the other, between English nationalism and the papal resolve to reconquer England for the Catholic

church. Philip made common cause with the papacy and with its British champion, Mary Queen of Scots, while Englishmen made common cause with Philip's revolted subjects in the Netherlands. The acquisition of Portugal, its fleet, and its colonial empire by Philip in 1580, the assassination of William of Orange in 1584, and the victories of Alexander of Parma in the Netherlands forced Elizabeth into decisive action. The Dutch were taken under her wing, a national expedition led by Drake paralyzed Spanish dominion in the West Indies in 1585 and then destroyed Philip's fleet at Cadiz in 1587, and the Queen of Scots was executed.

At last Philip attempted a tardy retaliation with the Spanish Armada. Its naval inefficiency was matched by political miscalculations. Philip never imagined that a united England could be conquered; but he laboured under the delusion, spread by English Catholic exiles, that the majority of the English people only awaited a signal to rise against their queen. When this delusion was exploded and the naval incompetence of Spain exposed, his dreams of conquest vanished, and he continued the war merely in the hope of securing guarantees against English interference in the New World, in the Netherlands, and in France, where he was helping the Catholic League to keep Henry of Navarre off the French throne. Ireland, however, was his most promising sphere of operations. There religious and racial hostility to the English was fusing discordant Irish septs into an Irish nation, and the appearance of a Spanish expedition was the signal for something like a national revolt. England had not been rich enough in men or money to give Ireland a really efficient government, but the extent of the danger in 1598-1602 stimulated an effort which resulted in the first real conquest of Ireland; and Englishmen set themselves to do the same work, with about the same amount of benevolence, for the Irish that the Normans had done for the Anglo-Saxons.

So far Tudor monarchy had proved an adequate exponent of English nationalism, because nationalism had been concerned mainly with the external problems of defence against foreign powers and jurisdictions. But with the defeat of the Spanish Armada, the urgency of those problems passed away; and during the last fifteen years of Elizabeth's reign national feelings found increasing expression in parliament and in popular literature. In all forms of literature, but especially in the Shakespearean drama, the keynote of the age was the evolution of a national spirit and technique, and their emancipation from the influence of classical and foreign models. In domestic politics a rift appeared between the monarchy and the nation. For one thing the alliance, forged by Henry VIII between the crown and parliament, against the church, was being changed into an alliance between the crown and church against the parliament, because parliament was beginning to give expression to democratic ideas of government in state and church which threatened the principle of personal rule common to monarchy and to episcopacy. "No Bishop, no King," was a shrewd aphorism of James I, which was in the making before he reached the throne. In other respects—such as monopolies, the power of the crown to levy indirect taxation without consent of parliament, to imprison subjects without cause shown, and to tamper with the privileges of the House of Commons—the royal prerogative was called in question. Popular acquiescence in strong personal monarchy was beginning to waver now that the need for it was disappearing with the growing security of national independence. People could afford the luxuries of liberty and party strife when their national existence was placed beyond the reach of danger; and a national demand for a greater share of self- government, which was to wreck the House of Stuart, was making itself heard before, on March 24, 1603, the last sovereign of the line which had made England a really national state passed away.

CHAPTER V

THE STRUGGLE FOR SELF-GOVERNMENT

1603-1815

National independence and popular self-government, although they were intimately associated as the two cardinal dogmas of nineteenth-century liberalism, are very different things; and the achievement of complete national independence under the Tudors did not in the least involve any solution of the question of popular self-government. Still, that achievement had been largely the work of the nation itself, and a nation which had braved the spiritual thunders of the papacy and the temporal arms of Philip II would not be naturally submissive under domestic tyranny. Perhaps the fact that James I was an alien hastened the admonition, which parliament addressed to him in the first session of the reign, to the effect that it was not prepared to tolerate in him many things which, on account of her age and sex, it had overlooked in Elizabeth.

Parliament began the constitutional conflict thus foreshadowed with no clear constitutional theory; and its views only crystallized under pressure of James I's pretensions. James possessed an aptitude for political speculation, which was rendered all the more dangerous by the facilities he enjoyed for putting his theories into practice. He tried to reduce monarchy to a logical

system, and to enforce that system as practical politics. He had succeeded to the English throne in spite of Henry VIII's will, which had been given the force of a parliamentary statute, and in spite of the common law which disabled an alien from inheriting English land. His only claim was by heredity, which had never been legally recognized to the exclusion of other principles of succession. James was not content to ascribe his accession to such mundane circumstances as the personal unfitness of his rivals and the obvious advantages of a union of the English and Scottish crowns; and he was led to attribute a supernatural virtue to the hereditary principle which had overcome obstacles so tremendous. Hence his theory of divine hereditary right. It must be distinguished from the divine right which the Tudors claimed; that was a right which was not necessarily hereditary, but might be varied by the God of battles, as at Bosworth. It must also be distinguished from the Catholic theory, which gave the church a voice in the election and deposition of kings. According to James's view, Providence had not merely ordained the king *de facto*, but had pre-ordained the kings that were to be, by selecting heredity as the principle by which the succession was to be determined for ever and ever. This ordinance, being divine, was beyond the power of man to alter. The fitness of the king to rule, the justice or efficiency of his government, were irrelevant details. Parliament could no more alter the succession, depose a sovereign, or limit his authority than it could amend the constitution of the universe. From this premiss James deduced a number of conclusions. Royal power was absolute; the king could do no wrong for which his subjects could call him to account; he was responsible to God but not to man—a doctrine which the Reformation had encouraged by proclaiming the Royal Supremacy over the church. He might, if he chose, make concessions to his people, and a wise sovereign like himself would respect the concessions of his predecessors. But parliamentary and popular privileges existed by royal grace; they could not be claimed as rights.

This dogmatic assurance, to which the Tudors had never resorted, embittered parliamentary opposition and obscured the historical justification for many of James's claims. Historically, there was much more to be said for the contention that parliament existed by grace of the monarchy than for the counterclaim that the monarchy existed by grace of parliament; and for the plea that parliament only possessed such powers as the crown had granted, than for the counter-assertion that the crown only enjoyed such rights as parliament had conceded. Few of James's arbitrary acts could not be justified by precedent, and not a little of his unpopularity was due to his efforts to exact from local gentry the performance of duties which had been imposed upon them by earlier parliaments. The main cause of dissatisfaction was the growing popular conviction that constitutional weapons, used by the Tudors for national purposes, were now being used by the Stuarts in the interests of the monarchy against those of the nation; and as the breach widened, the more the Stuarts were led to rely on these weapons and on their theory of the divine right of kings, and the more parliament was driven to insist upon its privileges and upon an alternative theory to that of James I.

This alternative theory was difficult to elaborate. There was no idea of democracy. Complete popular self-government is, indeed, impossible; for the mass of men cannot rule, and the actual administration must always be in the hands of a comparatively few experts. The problem was and is how to control them and where to limit their authority; and this is a question of degree. In 1603 no one claimed that ministers were responsible to any one but the king; administration was his exclusive function. It was, however, claimed that parliamentary sanction must be obtained for the general principles upon which the people were to be governed—that is to say, for legislation. The crown might appoint what bishops it pleased, but it could not repeal the Act of Uniformity; it might make war or peace, but could not impose direct and general taxation; it selected judges, but they could only

condemn men to death or imprisonment for offences recognized by the law. The subject was not at the mercy of the king except when he placed himself outside the law.

The disadvantage, however, of an unwritten constitution is that there are always a number of cases for which the law does not provide; and there were many more in the seventeenth century than there are to-day. These cases constituted the debatable land between the crown and parliament. Parliament assumed that the crown could neither diminish parliamentary privilege nor develop its own prerogative without parliamentary sanction; and it read this assumption back into history. Nothing was legal unless it had been sanctioned by parliament; unless the crown could vouch a parliamentary statute for its claims they were denounced as void. This theory would have disposed of much of the constitution, including the crown itself; even parliament had grown by precedent rather than by statute. There were, as always, precedents on both sides. The question was, which were the precedents of growth and which were those of decay? That could only be decided by the force of circumstances, and the control of parliament over the national purse was the decisive factor in the situation.

The Stuarts, indeed, were held in a cleft stick. Their revenue was steadily decreasing because the direct taxes, instead of growing with the nation's income, had remained fixed amounts since the fourteenth century, and the real value of those amounts declined rapidly with the influx of precious metals from the New World. Yet the expense of government automatically and inevitably increased, and disputes over foreign policy, over the treatment of Roman Catholics, over episcopal jurisdiction, over parliamentary privileges, and a host of minor matters made the Commons more and more reluctant to fill the empty Treasury. The blunt truth is that people will not pay for what they do not consider their concern; and Stuart government grew less and less a popular affair. The more the Stuarts

demanding, the greater the obstacles they encountered in securing compliance.

James I levied additional customs which were called impositions, and the judges in 1606 properly decided that these were legal. But they increased James's unpopularity; and, as a precaution, parliament would only grant Charles I tonnage and poundage (the normal customs duties) for one year after his accession instead of for life. Charles contended that parliament had, owing to non-user, lost the right of refusing these supplies to the crown; he proceeded to levy them by his own authority, and further demanded a general forced loan and benevolence. For refusing to pay, five knights were sent to prison by order of the privy council "without cause shewn," whereby the crown avoided a judicial decision on the legality of the loan. This provoked the Petition of Right in 1628; but in 1629 Charles finally quarrelled with parliament over the question whether in assenting to the petition he had abandoned his right to levy tonnage and poundage. For eleven years he ruled without parliament, raising supplies by various obsolete expedients culminating in ship money, on behalf of which many patriotic arguments about the necessities of naval defence were used.

He was brought up sharply when he began to kick against the Presbyterian pricks of Scotland; and the expenses of the Bishops' War put an end to the hand-to-mouth existence of his unparliamentary government in England. The Long parliament went to the root of the matter by demanding triennial sessions and the choice of ministers who had the confidence of parliament. It emphasized its insistence upon ministerial responsibility to parliament by executing Strafford and afterwards Laud. Charles, who laboured under the impression common to reactionaries that they are defending the rights of the people, contended that, in claiming an unfettered right to choose his own advisers, he was championing one of the most obvious liberties of the subject. Parliament, however, had realized that

in politics principles consist of details as a pound consists of pence; and that if it wanted sound legislative principles, it must take care of the details of administration. Charles had ruled eleven years without parliament; but so had Wolsey, and Elizabeth had apologized when she called it together oftener than about once in five years. If the state had had more financial ballast, and the church had been less high and top-heavy, Charles might seemingly have weathered the storm and let parliament subside into impotence, as the Bourbons let the States-General of France, without any overt breach of the constitution. After all, the original design of the crown had been to get money out of parliament, and the main object of parliament had once been to make the king live of his own. A king content with parsimony might lawfully dispense with parliament; and the eleven years had shown the precarious basis of parliamentary institutions, given a thrifty king and an unambitious country. Events were demonstrating the truth of Hobbes's maxim that sovereignty is indivisible; peace could not be kept between a sovereign legislature and a sovereign executive; parliament must control the crown, or some day the eleven years would recur and become perpetual. In France, unparliamentary government was prolonged by the victory of the crown for a century and three-quarters. In England, Charles's was the last experiment, because parliament defeated the claim of the crown to rule by means of irresponsible ministers.

In such a contest for the control of the executive there could be no final arbitrament save that of force; but Charles was only able to fight at all because parliament destroyed its own unanimity by attacking the church, and thus provided him with a party and an army. More than a temporary importance, however, attaches to the fact that the abeyance of monarchical power at once gave rise to permanent English parties; and it was natural that those parties should begin by fighting a civil war, for party is in the main an organ for the expression of combative instincts, and the metaphors of party warfare are still of a military character. Englishmen's combative instincts

were formerly curbed by the crown; but since the decline of monarchy they have either been vented against other nations, or expressed in party conflicts. The instinct does not commonly require two forms of expression at once, and party strife subsides during a national war. Its methods of expression, too, have been slowly and partially civilized; and even a general election is more humane than a civil war. But the first attack of an epidemic is usually the most virulent, and party strife has not a second time attained the dimensions of civil war.

One reason for this mitigation is that the questions at issue have been gradually narrowed down until, although they bulk large to heated imaginations, they really cover a very small area of political life, and the main lines continue the same whichever party triumphs. Another reason is that experience has proved the necessity of the submission of the minority to the majority. This is one of the greatest achievements of politics. In the thirteenth century Peter des Roches claimed exemption from the payment of a scutage on the ground that he had voted against it, and his claim was held to be valid. Such a contention means anarchy, and considerable progress had been made before the seventeenth century towards the constitutional doctrine that the vote of the majority binds the whole community. But the process was incomplete, and the causes of strife between Roundhead and Royalist were fundamental. A victory of the Royalists would have been carried to extremes, as the victory of the Roundheads was; and the result would almost certainly have been despotic government until a still more violent outbreak precipitated the country into a series of revolutions.

Liberty, like religious toleration, has been won through the internecine warfare between various forms of despotism; and the strength of the Royalists lay in the fact that parliament, in espousing Presbyterianism, weighted its cause with an ecclesiastical system as narrow and tyrannical as Laud's. New presbyter was but old priest writ large, and the balance

between the two gave the decision into the hands of the Independents, whose numerical inferiority was redeemed by Cromwell's military genius. When Presbyterians and Independents had ground the Royalists to powder at Marston Moor and Naseby, Charles sought to recover his authority through their quarrels. He fell between two stools. His double dealings with both parties led to the second civil war, to his own execution, and to the abolition of monarchy and of the House of Lords in 1649. Having crushed Catholic Ireland and Presbyterian Scotland, to which Charles and his son had in turn appealed, Cromwell was faced with the problem of governing England.

The victorious party was in a hopeless minority, and some of the fervour with which the Independents appealed to divine election may have been due to a consciousness that they would not have passed the test of a popular vote. In their view, God had determined the fundamentals of the constitution by giving the victory to His elect; these fundamentals were to be enshrined in a written rigid constitution, and placed beyond the reach of parliament or the people. Under the sovereignty of this inspired constitution (1653), which provided, among other things, for the union of England, Ireland, and Scotland, a drastic reform of the franchise and redistribution of seats, the government was to be in the hands of a "single person," the Protector, and a single chamber, the House of Commons. The single person soon found the single chamber "horridly arbitrary," and preferred the freedom of military despotism. But his major-generals were even more arbitrary than the single chamber, and in 1657 a fresh constitution was elaborated with a Second Chamber to make it popular. The Restoration had, in fact, begun almost as soon as the war was over; the single chamber republic of 1649-1653 had given place to a single-chamber monarchy, called the Protectorate, and a further step was taken when in 1657 the "other" House was added; Cromwell was within an ace of making himself a king and his dynasty hereditary. Only his personal genius, the strength of

his army, and the success of his foreign policy enabled him thus to restore the forms of the old constitution without the support of the social forces on which it had been based. His death in 1658 was necessarily followed by anarchy, and anarchy by the recall of Charles II.

The Restoration was not so much a restoration of monarchy, which had really been achieved in 1653, as a restoration of the church, of parliament, and of the landed gentry; and each took its toll of profit from the situation. The church secured the most sectarian of its various settlements, and the narrowness of its re-establishment kept nearly half the nation outside its pale. The landed gentry obtained the predominant voice in parliament for a century and three-quarters, and, as a consequence, the abolition of its feudal services to the crown, the financial deficit being made up by an excise on beer instead of by a land-tax. Parliament emancipated itself from the dictation of the army, taking care never to run that risk again, and from the restrictions of a written, rigid constitution. It also recovered its rotten boroughs and antiquated franchise, but lost its union with the parliaments of Ireland and Scotland. At first it seemed more royalist than the king; but it soon appeared that its enthusiasm for the monarchy was more evanescent than its attachment to the church and landed interest. Even in the first flush it refrained from restoring the Star Chamber and the other prerogative courts and councils which had enabled the crown to dispense with parliamentary and common law control; and Charles II was never able to repeat his father's experiment of ruling for eleven years without a parliament.

The ablest, least scrupulous, and most popular of the Stuarts, he began his reign with two objects: the emancipation of the crown from control as far as possible, and the emancipation of the Roman Catholics from their position of political inferiority; but the pursuit of both objects was strictly conditioned by a determination not to embark on his travels again. The two

objects were really incompatible. Charles could only make himself autocratic with the support of the Anglican church, and the church was determined to tolerate no relaxation of the penal code against other Catholics. At first Charles had to submit to Clarendon and the church; but in 1667 he gladly replaced Clarendon by the Cabal administration, among the members of which the only bond of unity was that it did not contain a sound Anglican churchman. With its assistance he published his Declarations of Indulgence for Roman Catholics and Dissenters (1672), and sought to secure himself against parliamentary recalcitrance by a secret treaty with Louis XIV (1670). This policy failed against the stubborn opposition of the church. The Cabal fell; Danby, a replica of Clarendon, came into office; and the Test Act of 1673 made the position of the Roman Catholics worse than it was before the Declaration.

This failure convinced Charles that one of his two designs must go by the board. He threw over the less popular cause of his co-religionists; and henceforth devoted himself to the task of emancipating the crown from parliamentary interference. But popular suspicion had been aroused by Charles's secret dealings and James's open professions; and Titus Oates, who knew something about real plans for the reconversion of England, inflated his knowledge into a monstrous tale of a popish plot. The Whigs, as the opposition party came to be called, used it for more than it was worth to damage the Tories under Danby. The panic produced one useful measure, the Habeas Corpus Act of 1679, many judicial murders, and a foolish attempt to exclude James from the succession. As it subsided, Charles deftly turned the reaction to the ruin of the Whigs (1681). Of their leaders, Shaftesbury fled to Holland, and Sidney and Russell were brought to the block; their parliamentary strongholds in the cities and towns were packed with Tories; and for the last four years of his reign Charles ruled without a parliament, but with the goodwill of the Tories and the church.

This half of the nation would probably have acquiesced in the growth of despotism under James II, had not the new king ostentatiously ignored the wisdom of Charles II. He began (1685) with everything in his favour: a Tory parliament, a discredited opposition, which further weakened its case by Argyll's and Monmouth's rebellions, and a great reputation for honesty. Within a couple of years he had thrown away all these advantages by his revival of Charles II's abandoned Roman Catholic policy, and had alienated the Anglican church, by whose support alone he could hope to rule as an English despot. He suspended and dispensed with laws, introduced Roman Catholics into the army, the universities, the privy council, raised a standing force of thirty thousand men, and finally prosecuted seven bishops for seditious libel. William III, the husband of James's daughter Mary, was invited by representatives of all parties to come over as England's deliverer, and James fled on his approach. He could not fight, like his father, because no English party supported his cause.

The Revolution of 1688 was singularly negative so far as its results were expressed in the Bill of Rights and the Act of Settlement. These celebrated constitutional documents made little provision for national self-government. One king, it is true, had been evicted from the throne, and Roman Catholics were to be always excluded; and these measures disposed of divine hereditary right. But that had been a Stuart invention, and kings had been deposed before James II. Why should self-government follow on the events of 1688 any more than on those of 1399, 1461, or 1485? Future sovereigns were, indeed, to refrain from doing much that James had done. They were not to keep a standing army in time of peace, not to pardon ministers impeached by the House of Commons, not to dismiss judges except on an address from both Houses of Parliament, not to suspend laws at all nor to dispense with them in the way James had done, not to keep a parliament nor do without one longer than three years, and not to require excessive bail. Religious toleration, too, was secured in some measure, and freedom of the

press to a limited extent. But all these enactments were safeguards against the abuse of royal power and infringement of civil liberty rather than provisions for self-government. No law was passed requiring the king to be guided by ministers enjoying the confidence of parliament; he was still the real and irresponsible executive, and parliament was limited to legislation. The favourite Whig toast of "civil and religious liberty" implied an Englishman's right to freedom from molestation, but not a right to a voice in the government of the country. Responsible self-government was not guaranteed by the laws, but it was ensured by the facts, of the Revolution.

The truth is, that the methods of English constitutional progress have been, down to this day, offensive strategy and defensive tactics. Positions have been taken up which necessitate the retirement of the forces of reaction, unless they are prepared to make attacks predestined to defeat; and so, nearly every Liberal advance has been made to appear the result of Tory aggression. The central position has always been control of the purse by parliament. At first it only embraced certain forms of direct taxation; gradually it was extended and developed by careful spade-work until it covered every source of revenue. Entrenched behind these formidable earthworks, parliament proceeded to dictate to the early Stuarts the terms of national policy. Charles I, provoked by its assumptions, made his attack on the central position, was foiled, and in his retreat left large portions of the crown's equipment in the hands of parliament. Rash attacks by James II resulted in a still more precipitate retreat and in the abandonment of more of the royal prerogatives. The growth of the empire and of the expenses of government riveted more firmly than ever the hold of parliament over the crown; the greater the demands which it alone could meet, the higher the conditions it could impose upon their grant, until parliament determined absolutely the terms upon which the office of monarchy should be held. In a similar way the Commons used their control of the national purse to restrict the powers of the House of Lords; provocation has led to attacks on the

central position, and the failure of these attacks has been followed by surrender. Prudent leaders have preferred to retire without courting the preliminary of defeat.

William III and his successors adopted this course when confronted with the impregnable position of parliament after the Revolution; and hence later constitutional gains, while no apparent part of the parliamentary position, were its inevitable consequences. William, absorbed in a life-and-death struggle with Louis XIV, required a constant stream of supplies from parliament; and to secure its regularity he had to rely on the good offices and advice of those who commanded most votes in the House of Commons. In the Lords, who then numbered less than two hundred, he could secure the balance of power through the appointment of bishops. In the Commons his situation was more difficult. The partial demise of personal monarchy in 1688 led to a scramble for its effects, and the scramble to the organization of the two principal competitors, the Whig and Tory parties. The Whigs formed a "junto," or caucus, and the Tories followed their example. William preferred the Whigs, because they sympathized with his wars; but the country sometimes preferred the Tories, because it hated William's Dutchmen and taxation. On William's death in 1702 the danger from Louis XIV was considered so acute that a ministry was formed from all parties in order to secure the united support of parliament; but gradually, in Anne's reign, the Tories who wanted to make peace left the ministry, until in 1708 it became purely Whig. In 1710 it fell, and the Tories took its place. They wanted a Stuart restoration, even at the price of undoing the Revolution, if only the Pretender would abandon his popery; while the Whigs were determined to maintain the Revolution even at the price of a Hanoverian dynasty. They returned to power in 1714 with the accession of George I, and monopolized office for more than half a century. As time went on, many Whigs became hardly distinguishable from Tories who had relinquished Jacobitism; and from Lord North's accession to office in 1770

down to 1830 the Tories enjoyed in their turn a half- century of nearly unbroken power.

During this period the party system and cabinet government were elaborated. Party supplanted the crown as the determining factor in British government, and the cabinet became the executive committee of the party possessing a majority in the House of Commons. Queen Anne had not the intellect nor vigour to assert her independence of ministers, and George I, who understood no English, ceased to attend cabinet meetings. The royal veto disappeared, and even the king's choice of ministers was severely limited, not by law but by practical necessities. Ministers, instead of giving individual advice which the sovereign might reject, met together without the king and tendered collective advice, the rejection of which by the sovereign meant their resignation, and if parliament agreed with them, its dissolution or surrender on the part of the crown. For the purpose of tendering this advice and maintaining order in the cabinet, a chief was needed; Walpole, by eliminating all competitors during his long administration (1721-1742), developed the office of prime minister, which, without any law to establish it, became one of the most important of British institutions. Similarly the cabinet itself grew and was not created by any Act; indeed, while the cabinet and the prime minister were growing, it would have been impossible to induce any parliament to create them, for parliament was still jealous of royal influence, and even wanted to exclude from its ranks all servants of the crown. But, fortunately, the absence of a written constitution enabled the British constitution to grow and adapt itself to circumstances without legal enactment.

The circumstance that the cabinet was the executive committee of the majority in the House of Commons gave it the command of the Lower House, and by means of the Commons' financial powers, of the crown. This party system was deplored by many; Bolingbroke, a Tory leader out of

office, called for a national party, and urged the crown to emancipate itself from Whig domination by choosing ministers from all sections. Chatham thought that in the interests of national efficiency, the ablest ministers should be selected, whatever their political predilections. George III adapted these ideas to the purpose of making himself a king in deed. But his success in breaking down the party and cabinet system was partial and temporary; he only succeeded in humbling the Whig houses by giving himself a master in the person of the younger Pitt (1784), who was supported by the majority of the nation.

With the House of Lords the cabinet has had more prolonged and complicated troubles. Ostensibly and constitutionally the disputes have been between the two Houses of Parliament; and this was really the case before the development of the close connexion between the cabinet and the Commons. Both Houses had profited by the overthrow of the crown in the seventeenth century, and the extremes to which they sometimes pushed their claims suggest that they were as anxious as the crown had been to place themselves above the law. The House of Lords did succeed in making its judicial decisions law in spite of the crown and Commons, although the Commons were part of the "High Court of Parliament," and no law had granted the Lords supreme appellate jurisdiction; hence the constitutional position of the House of Lords was made by its own decisions and not by Act of Parliament or of the crown. This claim to appellate jurisdiction, which was much disputed by the Commons during the reign of Charles II, was only conceded in return for a similar concession to the Commons in financial matters. Here the Commons practically made their resolutions law, though the Lords insisted that the privilege should not be abused by "tacking" extraneous provisions on to financial measures.

There were some further disputes in the reigns of William III and Anne, but the only occasion upon which peers were actually made in order to

carry a measure, was when the Tories created a dozen to pass the Peace of Utrecht in 1712. It is, indeed, a singular fact that no serious conflict between the two Houses occurred during the whole of the Georgian period from 1714 to 1830. The explanation seems to be that both Houses were simply the political agents of the same organized aristocracy. The humble townsfolk who figured in the parliaments of Edward I (see p. 65) disappeared when a seat in the House of Commons became a position of power and privilege; and to the first parliament (1547) for which journals of the Commons proved worth preserving, the eldest son of a peer thought it worth while seeking election. Many successors followed; towns were bribed or constrained to choose the nominees of peers and country magnates; burgage tenements were bought up by noble families to secure votes; and the Restoration parliament had material reasons for treating Cromwell's reforms as void, and restoring rotten boroughs and fancy franchises. By the time that parliament had emancipated itself from the control of the crown, it had also emancipated itself to a considerable extent from the control of the constituencies.

This political system would not have developed nor lasted so long as it did, had it not had some virtue and some relevance to its environment. In every country's development there is a stage in which aristocracy is the best form of government. England had outgrown monarchical despotism, but it was not yet fit for democracy. Political power depends upon education, and it would have been unreasonable to expect intelligent votes from men who could not read or write, had small knowledge of politics, little practical training in local administration, and none of the will to exercise control. Politics were still the affair of the few, because only the few could comprehend them, or were conscious of the uses and limitations of political power. The corrupt and misguided use of their votes by those who possessed them was some reason for not extending the franchise to still more ignorant masses; and it was not entirely irrational to leave the control

of national affairs in the hands of that section of the nation which had received some sort of political education.

The defects, however, of a political system, which restricts power to a limited class or classes, are that each class tends to exercise it in its own interests and resents its extension to others, even when they are qualified for its use. If all other historical records had disappeared, land laws, game laws, inclosure acts, and corn laws—after the Revolution a bounty was actually placed on the export of corn, whereby the community was taxed in order to deprive itself of food or make it dearer—alone would prove that political power in the Georgian period was vested in a landed aristocracy, though England's commercial policy, especially towards Ireland, would show that mercantile interests had also to be consulted. Similarly, the journals of the House of Commons would prove it to have been a close corporation less anxious for the reign of law than for its own supremacy over the law. It claimed authority to decide by its own resolutions who had the right to vote for its members and who had the right to a seat. It expelled members duly elected, and declared candidates elected who had been duly rejected. It repudiated responsibility to public opinion as derogatory to its liberties and independence; it excluded strangers, and punished the publication of debates and division-lists as high misdemeanours. It was a law unto itself, and its notions of liberty sometimes sank to the level of those of a feudal baron.

Hence the comparative ease and success with which George III filled its sacred precincts with his paid battalions of "king's friends." He would have been powerless against a really representative House; but he could buy boroughs and votes as effectively as Whig or Tory dukes, and it was his intervention that raised a doubt in the mind of the House whether it might not need some measure of reform. The influence of the crown, it resolved in 1780, had increased, was increasing, and ought to be diminished. But it

could only be diminished by destroying that basis of corruption which supported the power of the oligarchs no less than that of the crown. Reform would be a self-denying ordinance, if not an act of political suicide, as well as a blow at George III. Privileged bodies do not reform themselves; proposals by Burke and by Pitt and by others were rejected one after another; and then the French Revolution came to stiffen the wavering ranks of reaction. Not till the Industrial Revolution had changed the face of England did the old political forces acknowledge their defeat and surrender their claim to govern the nation against its will.

CHAPTER VI

THE EXPANSION OF ENGLAND

1603-1815

In the reign of Elizabeth Englishmen had made themselves acquainted with the world. They had surveyed it from Greenland's icy mountains to India's coral strand, and from the Orinoco to Japan, where William Adams built the first Japanese navy; they had interfered in the politics of the Moluccas and had sold English woollens in Bokhara; they had sailed through the Golden Gate of California and up the Golden Horn of the Bosphorus; they had crossed the Pacific Ocean and the deserts of Central Asia; they had made their country known alike to the Great Turk and to the Grand Moghul. National unity and the fertile mingling of classes had generated this expansive energy, for the explorers included earls as well as humble mariners and traders; and all ranks, from the queen downwards, took shares in their "adventures." They had thus acquired a body of knowledge and experience which makes it misleading to speak of their blundering into empire. They soon learnt to concentrate their energies upon those quarters of the globe in which expansion was easiest and most profitable. The East India Company had received its charter in 1600, and the naval defeat of Spain had opened the sea to all men; but, with the doubtful exception of Newfoundland, England secured no permanent

footing outside the British Isles until after the crowns of England and Scotland had been united.

This personal union can hardly be called part of the expansion of England, but it had been prepared by some assimilation and cooperation between the two peoples, and it was followed by a great deal more. The plantation of Ulster by English and Scots after the flight of the Irish earls of Tyrone and Tyrconnell in 1607 is one illustration, and Nova Scotia is another; but Virginia, the first colony of the empire, was a purely English enterprise, and it cradled the first-born child of the Mother of Parliaments. To Virginia men went for profit; principle drove them to New England. The Pilgrim Fathers, who sailed in the *Mayflower* in 1620, had separated from the church and meant to separate from the state, and to set up a polity the antithesis of that of Laud and the Stuarts. But there was something in common between them; the Puritans, too, wanted uniformity, and believed in their right to compel all to think, or at least to worship, alike. Schism, however, appeals with ill grace and little success to authority; and dissentients from the dissenters formed Independent offshoots from New England. But all these Puritan communities in the north were different in character from Virginia in the south; they consisted of democratic townships, Virginia of plantations worked by slaves. Slave labour was also the economic basis of the colonies established on various West Indian islands during the first half of the seventeenth century; and this distinction between colonies used for exploitation and colonies used for settlement has led to important constitutional variations in the empire. Only those colonies in which large white communities are settled have received self-government; those in which a few whites exploit a large coloured population remain subject to the control of the home government. The same economic and social differences were responsible for the great American civil war between North and South in the nineteenth century.

There are three periods in British colonial expansion. The first, or introductory period, was marked by England's rivalry with Spain and Portugal; the second by its rivalry with the Dutch; and the third by its rivalry with France; and in each the rivalry led to wars in which Britain was victorious. The Elizabethan war with Spain was followed by the Dutch wars of the Commonwealth and Charles II's reign, and then by the French wars, which lasted, with longer or shorter intervals, from 1688 to 1815. The wars with the Dutch showed how completely, in the latter half of the seventeenth century, commercial interests outweighed those of religion and politics. Even when English and Dutch were both living under Protestant republics, they fought one another rather than the Catholic monarchies of France and Spain. Their antagonism arose over rival claims to sovereignty in the Narrow Seas, which the herring fisheries had made as valuable as gold mines, and out of competition for the world's carrying trade and for commerce in the East Indies. The last-named source of irritation had led to a "massacre" of Englishmen at Amboyna in 1623, after which the English abandoned the East Indian islands to the Dutch East India Company, concentrating their attention upon India, where the acquisition of settlements at Calcutta, Madras, and Bombay laid the foundations of the three great Presidencies of the British Empire in India.

A fatal blow was struck at the Dutch carrying trade by the Navigation Acts of 1650-1651, which provided that all goods imported into England or any of its colonies must be brought either in English ships or in those of the producing country. The Dutch contested these Acts in a stubborn naval war. The great Admirals, Van Tromp and Blake, were not unevenly matched; but the Dutch failed to carry their point. The principle of the Navigation Acts was reaffirmed, with some modifications, after the Restoration, which made no difference to England's commercial and colonial policy. A second Dutch war accordingly broke out in 1664, and this time the Dutch, besides failing in their original design, lost the New Netherland colony they had

established in North America. Portions of it became New York, so named after the future James II, who was Duke of York and Lord High Admiral, and other parts were colonized as Pennsylvania by the Quaker, William Penn. The great importance of this acquisition was that it drove out the wedge dividing the New England colonies to the north from Virginia and Maryland, which had been founded in Charles I's reign, mainly as a refuge for Roman Catholics, to the south; and this continuous line of British colonies along the Atlantic seaboard was soon continued southwards by the settlement of the two Carolinas. The colonization of Georgia, still further south, in the reign of George II, completed the thirteen colonies which became the original United States.

France now overshadowed Holland as England's chief competitor. Canada, originally colonized by the French, had been conquered by the English in 1629, but speedily restored by Charles I; and towards the close of the seventeenth century France began to think of uniting Canada with another French colony, Louisiana, by a chain of posts along the Mississippi. Colbert, Louis XIV's minister, had greatly developed French commerce, navy, and navigation; and the Mississippi Company was an important factor in French history early in the eighteenth century. This design, if successful, would have neutralized the advantage England had secured in the possession of the Atlantic seaboard of North America, and have made the vast West a heritage of France.

Nevertheless, the wars of William III and Anne were not in the main colonial. Louis' support of James II, and his recognition of the Old Pretender, were blows at the heart of the empire. Moderate success on James's part might have led to its dismemberment, to the separation of Catholic Ireland and the Scottish Highlands from the remainder of the British Isles; and dominion abroad would not long have survived disruption at home. The battle of the Boyne (1690) disposed of Irish independence,

and the Act of Union with Scotland (1707) ensured Great Britain against the revival of separate sovereignties north and south of the Tweed. Scotland surrendered her independent parliament and administration: it received instead the protection of the Navigation laws, representation in both houses of the United Parliament, and the privilege of free trade with England and its colonies—which put an end to the tariff wars waged between the two countries in the seventeenth century; and it retained its established Presbyterian church. Forty- five Scottish members were to sit in the House of Commons, and sixteen Scottish peers elected by their fellows for each parliament in the House of Lords. Scottish peers who were not thus chosen could neither sit in the House of Lords nor seek election to the House of Commons.

In time this union contributed materially to the expansive energy of the British Empire, but it did not substantially help Marlborough to win his brilliant victories in the war with France (1702-1713). Apart from the general defeat of Louis XIV's ambition to dominate Europe, the most important result, from the British point of view, was the definite establishment of Great Britain as a Mediterranean power by the acquisition of Gibraltar and Minorca. English expeditions against Canada had not been very successful, but the Peace of Utrecht (1713) finally secured for the empire the outworks of the Canadian citadel— Hudson's Bay Territories, Newfoundland, and the future provinces of Nova Scotia and New Brunswick. The trading privileges which Great Britain also secured in Spanish America both assisted the vast growth of British commerce under Walpole's pacific rule, and provoked the war with Spain in 1739 which helped to bring about his fall. This war, which soon merged in the war of the Austrian Succession (1741-1748), was indecisive in its colonial aspects, and left the question of French or English predominance in India and North America to be settled in the Seven Years' War of 1756-1763.

War, however, decides little by itself, and three of the world's greatest soldiers, Alexander, Hannibal, and Napoleon, founded no permanent empires. An excellent servant, but a bad master, the soldier needs to be the instrument of other than military forces if his labours are to last; and the permanence of the results of the Seven Years' War is due less to the genius of Pitt, Wolfe, Clive, and Howe than to the causes which laid the foundations of their achievements. The future of North America was determined not so much by Wolfe's capture of Quebec—which had fallen into British hands before—as by the fact that before the Seven Years' War broke out there were a million and a quarter British colonists against some eighty thousand French. If Canada had not fallen in the Seven Years' War, it would have succumbed to British arms in the wars of the French Revolution and Napoleon. The fate of India seemed less certain, and the genius of Dupleix roused better hopes for France; yet India, defenceless as it was against European forces, was bound to fall a prize to the masters of the sea, unless some European state could control its almost impassable overland approaches. Clive, perhaps, was almost as much the brilliant adventurer as Dupleix, but he was supported at need by an organized government more susceptible than the French *ancien régime* to the pressure of commercial interests and of popular ambitions.

The conquest of Canada led to the loss of the thirteen American colonies. Their original bias towards separation had never been eradicated, and the recurrent quarrels between the various legislatures and their governors had only been prevented from coming to a head by fear of the Frenchmen at their gates and disunion among themselves. Charles II and James II wanted to centralize the New England colonies on a monarchical basis; and they began by attacking their charters in much the same way as they dealt with the Puritan corporations of English cities and boroughs. Those of Massachusetts, Connecticut, and Rhode Island were forfeited, and these colonies were thus provided with a grievance common to themselves and to

the mother-country. But, while the Revolution supplied a remedy at home, it did not in the colonies. Their charters, indeed, were restored; but when the Massachusetts legislature passed a bill similar to the Bill of Rights, the royal assent was not accorded, and the colonists remained liable to taxation without their own consent. This theoretical right of Great Britain to tax the American colonies was wisely left in abeyance until George Grenville's righteous soul was vexed with the thought that colonists, for whose benefit the Seven Years' War had largely been waged, should escape contribution towards its expenses. Walpole had reduced the duties on colonial produce and had winked at the systematic evasion of the Navigation Acts by the colonists. Grenville was incapable of such statesmanlike obliquity. He tried to stop smuggling; he asserted the right of the home government to control the vast hinterland from which the colonists thought that the French had been evicted for their particular benefit; and he passed the Stamp Act, levying internal taxation from the colonies without consulting their legislatures.

Security from the French made the colonists think they were independent of the British, and, having an inordinate proportion of lawyers among them, they did not lack plausible arguments. They admitted the right of the British parliament to impose external taxes, such as customs duties, on the colonies, but denied its right to levy internal taxation. The distinction was well established in English constitutional history, and kings had long enjoyed powers over the customs which they had lost over direct taxation. But the English forefathers of the Puritan colonists had seen to it that control over direct, led to control over indirect, taxation; and it may be assumed that the American demand for the one would, if granted, soon have been followed by a demand for the other. In any case, reasons for separation would not have been long in forthcoming. It was not that the old colonial system was particularly harsh or oppressive; for the colonial producer, if restricted (nominally) to the home market, was well protected there. But the

colonists wanted complete control over their own domestic affairs. It was a natural and a thoroughly British desire, the denial of which to-day would at once provoke the disruption of the empire; and there was no reason to expect colonial content with a government which was not giving much satisfaction in England. A peaceful solution was out of the question, because the governing classes, which steadily resisted English demands for reform, were not likely to concede American demands for radical innovations. There were no precedents for such a self-denying ordinance as the grant of colonial self-government, and law was on the side of George III. But things that are lawful are not always expedient, and legal justification is no proof of wisdom or statesmanship.

The English people supported George III until he had failed; but there was not much enthusiasm for the war, except at places like Birmingham, which possessed a small-arms manufactory and other stimulants to patriotic fervour. It was badly mismanaged by George, and Whigs did their best to hamper his efforts, fearing, with some reason, that success in North America would encourage despotic enterprise at home. George would, however, in all probability have won but for the intervention of France and Spain (1778-1779), who hoped to wipe off the scores of the Seven Years' War, and for the armed neutrality of Russia and Holland (1780), who resented the arrogant claims of the British to right of search on the high seas. At the critical moment Britain lost the command of the sea; and although Rodney's naval victory (1782) and the successful defence of Gibraltar (1779-1783) enabled her to obtain tolerable terms from her European enemies, American independence had to be granted (1783). For Ireland was on the verge of revolt, and British dominion in India was shaken to its foundations. So the two great sections of the English people parted company, perhaps to their mutual profit. Certainly each government has now enough to do without solving the other's problems, and it is well-nigh impossible to conceive a state maintaining its equilibrium or its

equanimity with two such partners as the British Empire and the United States struggling for predominance within it.

Meanwhile, Warren Hastings saved the situation in India by means that were above the Oriental but below the normal English standard of morality. He was impeached for his pains later on by the Whigs, whose moral indignation was sharpened by resentment at the use of Anglo- Indian gold to defeat them at the general election of 1784. Ireland was placated by the grant of legislative independence (1782), a concession both too wide and too narrow to provide any real solution of her difficulties. It was too wide because Grattan's parliament, as it is called, was co-ordinate with, and not subordinate to, the imperial parliament; and there was thus no supreme authority to settle differences, which sooner or later were bound to arise between the two. It was too narrow, because the Irish executive remained responsible to Downing Street and not to the Irish parliament. The parliament, moreover, did not represent the Irish people; Catholics were excluded from it, and until 1793 were denied the vote; sixty seats were in the hands of three families, and a majority of the members were returned by pocket-boroughs. A more hopeless want of system can hardly be imagined: a corrupt aristocracy, a ferocious commonalty, a distracted government, a divided people—such was the verdict of a contemporary politician. At length, after a Protestant revolt in Ulster, a Catholic rising in the south, and a French invasion, Pitt bribed and cajoled the borough- mongers to consent to union with Great Britain (1800). Thirty-two Irish peers, twenty-eight temporal and four spiritual, were to sit in the House of Lords, and a hundred Irish members in the House of Commons. The realization of the prospect of Roman Catholic Emancipation, which had been held out as a further consideration, was postponed by the prejudices of George III until its saving grace had been lost. Grattan's prophecy of retribution for the destruction of Irish liberty has often been quoted: "We will avenge ourselves," he said, "by sending into the ranks of your parliament, and into the very heart of your

constitution, one hundred of the greatest scoundrels in the kingdom"; but it is generally forgotten that he had in mind the kind of members nominated by peers and borough-mongers to represent them in an unreformed House of Commons.

The loss of the American colonies threw a shadow over British colonial enterprise which had some lasting effects on the colonial policy of the mother-country. The severance did not, as is often supposed, convince Great Britain that the grant of self-government to colonies was the only means to retain them. But they had been esteemed mainly as markets for British exports, and the discovery that British exports to America increased, instead of diminishing, after the grant of independence, raised doubts about the value of colonies which explain the comparative indifference of public opinion towards them during the next half-century. For the commercial conception of empire was still in the ascendant; and if the landed interest controlled the domestic politics of the eighteenth century, the commercial interest determined the outlines of British expansion. Territory was acquired or strongholds seized in order to provide markets and guard trade communications.

From this point of view India became, after the loss of the American colonies, the dominant factor in British external policy. The monetary value of India to the British far exceeded that of all their other foreign possessions put together. The East India Company's servants often amassed huge fortunes in a few years, and the influence of this wealth upon British politics became very apparent in the last quarter of the century. It put up the price of parliamentary pocket-boroughs, and thus delayed reform; it enabled commercial men to force their way into the House of Lords by the side of landed magnates, and the younger Pitt doubled its numbers in his efforts to win the political support of the moneyed classes; and finally, it affected

consciously or unconsciously men's views of the interests of the empire and of the policy to be pursued to serve them.

The half-century which followed the American War of Independence was not, indeed, barren of results in other directions than those indicated by the East India Company. Canada was saved from the seductions of American independence by a wise recognition of its established customs and religion (1774), and was strengthened by the influx of United Empire Loyalists who would not bow the knee to republican separatism. Provision was made for the government of these some what discordant elements by dividing Canada into two provinces, one predominantly French, the other British, and giving each a legislature for the voicing of its grievances (1791). So, too, the impulse of the Seven Years' War survived the War of Independence in other quarters of the globe. Naval officers, released from war-like operations, were sent to explore the Pacific; and, among them, Captain James Cook surveyed the coasts of Australia and New Zealand (1770). The enthusiastic naturalist of the expedition, Joseph Banks, persistently sang the praises of Botany Bay; but the new acquisition was used as a convict settlement (1788), which was hardly a happy method of extending British civilization. The origin of Australia differed from that of New England, in that the Pilgrim Fathers wanted to avoid the mother- country; while the mother-country wanted to avoid the convicts; but in neither case was there any imperialism in the aversion.

India was, in fact, the chief outlet at that period for British imperial sentiment. It is true that Great Britain laid down in solemn official language, in 1784, that the acquisition of territory was repugnant to the principles of British government. But so had Frederick the Great begun his career by writing a refutation of Machiavelli; circumstances, and something within which made for empire, proved too strong for liberal intentions, and the only British war waged between the Peace of Versailles in 1783 and the

rupture with Revolutionary France in 1793 resulted in the dismemberment of Tippoo Sultan's kingdom of Mysore (1792). The crusading truculence of the French republicans, and Napoleon's ambition, made the security of the British Isles Pitt's first consideration; but when that was confirmed by naval victories over the French on the 1st of June, 1794, and at the battle of the Nile in 1798, over the Dutch at Camperdown and over the Spaniards at Cape St. Vincent in 1797, over the Danes at Copenhagen in 1801, and over the French and Spaniards combined at Trafalgar in 1805, Great Britain concentrated its energies mainly on extending its hold on India and the Far East, and on strengthening its communications with them. The purpose of the battle of the Nile was to evict Napoleon from Egypt, which he had occupied as a stepping-stone to India, and Malta was seized (1800) with a similar object. Mauritius, too, was taken (1810), because it had formed a profitable basis of operations for French privateers against the East India trade; and the Cape of Good Hope was conquered from the Dutch, the reluctant allies of the French, in 1795, as a better half-way house to India than St. Helena, which England had acquired from the same colonial rivals in 1673. The Cape was restored in 1802, but reconquered in 1806 and retained in 1815.

In the Far East, British dominion was rapidly extended under the stimulus of the Marquess Wellesley, elder brother of the Duke of Wellington, who endeavoured in redundantly eloquent despatches to reconcile his deeds with the pacific tone of his instructions. Ceylon was taken from the Dutch in 1796, and was not restored like Java, which suffered a similar conquest; and British settlements were soon afterwards founded at Singapore and on the Malay Peninsula. In India itself Tippoo was defeated and slain in his capital at Seringapatam in 1799, the Mahrattas were crushed at Assye and Argaum in 1803, the nabob was forced to surrender the Carnatic, and the vizier the province of Oudh, until the whole coast-line of India and the valley of the Ganges had passed directly or

indirectly under British control. These regions were conquered partly because they were more attractive and accessible to the British, and partly to prevent their being accessible to the French; the poorer and more difficult mountainous districts of the Deccan, isolated from foreign infection, were left under native rulers.

The final overthrow of Napoleon, to which Great Britain had contributed more by its efforts in the Spanish Peninsular War (1808-1814) than at the crowning mercy of Waterloo, confirmed its conquests in India and its control of the trade routes of the world. Its one permanent failure during the war was Whitelocke's expedition to Buenos Ayres in 1807; that attack was not repeated because the Spaniards having, by their revolt against Napoleon, become England's allies, it was hardly fair to appropriate their colonies; and so South America was left to work out its destinies under Latin and not Teutonic influence. Most of the West Indian islands, however, with British Honduras and British Guiana on the mainland, had been acquired for the empire, which had now secured footholds in all the continents of the world. The development of those footholds into great self-governing communities, the unique and real achievement of the British Empire, was the work of the nineteenth century; and its accomplishment depended upon the effects of the changes known to us as the Industrial Revolution.

CHAPTER VII

THE INDUSTRIAL REVOLUTION

The Industrial Revolution is a phrase invented by Arnold Toynbee, and now generally used to indicate those economic changes which turned England from an agricultural into an industrial community. The period during which these changes took place cannot from the nature of things be definitely fixed; but usually it is taken to extend from about the middle of the eighteenth century to the close of the reign of George III. Two points, however, must be remembered: first, that there was a commercial as well as an agricultural and an industrial stage of development; and secondly, that this period contains merely the central and crucial years of a process of specialization and expansion which occupied centuries of English economic history. There was also before the agricultural stage a pastoral stage; but that lies beyond the scope of English history, because both the English people and the Celts they conquered had passed out of the pastoral stage before recorded English history begins. Each of these stages corresponds to a different social organization: the pastoral stage was patriarchal, the agricultural stage was feudal, the commercial stage was plutocratic, and the industrial stage leads towards democracy. The stages, of course, overlap one another, and every national community to-day is partly pastoral, partly agricultural, partly commercial, and partly industrial. We can only call a

nation any one of these things in the sense that they denote its dominant characteristic.

This evolution has been the result of man's increasing control over nature. In the pastoral stage he takes of the produce of nature, providing little or nothing himself. In the agricultural stage he manipulates the soil and subdues it, he harnesses the wind and the streams to grind his corn, and to water his land; Providence may have placed all things under his feet, but he takes long to discover their use and the means to use them. In the commercial and industrial stages he employs the wind and water, steam and electricity, for transport, communications, and manufactures. But he can only develop this mastery by the interdependent processes of specialization, co-operation, and expansion. A lonely shepherd can live on his flocks without help; a single family can provide for its own agricultural subsistence, and the normal holding of the primitive English family, the "hide" as it was called, was really a share in all the means of livelihood, corn-land, pasture-land, rights of common and of cutting wood. This family independence long survived, and home-brewing, home-baking, home-washing, are not even now extinct. Each family in the primitive village did everything for itself. When its needs and standard of comfort grew, increased facilities beyond the reach of the individual household were provided by the lord of the manor, as, for instance, a mill, a bakehouse, a wine-press. Indeed, the possession of these things may have helped him into the lordship of the manor. Certainly, some of them are mentioned in early Anglo-Saxon days among the qualifications for thegnhood, and when the lord possessed these things, he claimed a monopoly; his tenants were bound to grind their corn at his mill, and so forth. But there were things he did not care to do, and a villager here and there began to specialize in such trades as the blacksmith's, carpenter's, and mason's. This specialization involved co-operation and the expansion of household economy into village economy.

Others must do the blacksmith's sowing and reaping, while he did the shoeing for the whole village.

Thus village industries grew up, and in unprogressive countries, such as India, where, owing to distance and lack of communications, villages were isolated and self-sufficing, this village economy became stereotyped, and the village trades hereditary. But in western Europe, as order was slowly evolved after the chaos of the Dark Ages, communications and trade-routes were opened up; and whole villages began to specialize in certain industries, leaving other commodities to be produced by other communities. For the exchange of these commodities markets and fairs were established at various convenient centres; and this in turn led to the specialization of traders and merchants, who did not make, but only arranged for the barter of, manufactures. Through the development of local industries and markets, villages grew into towns, and towns expanded with the extent of the area they supplied. A town which supplied a nation with cutlery, for instance, was necessarily bigger than a town which only supplied a county. This expansion of markets meant that towns and cities were more and more specializing in some one or more industries, leaving the great majority of their needs to be supplied from elsewhere; and the whole process was based on the growing complexity of civilization, on the multiplying number of implements required to do the work of the world.

The comparatively simple organization of feudal society broke down under the stress of these changes; a middle class, consisting of neither lords nor villeins, was needed to cope with industry and commerce. Handworkers also were required, so that from the middle of the fourteenth century we find a regular flight from the land to the towns in progress. Another great change took place. No one had been rich according to modern notions in the early Middle Ages, and no one had been destitute; there was no need of a Poor Law. But with the expansion of the sphere of men's operations, the

differences between the poor and the rich began to increase. There is little to choose between a slow runner and a swift when the race covers only ten yards; there is more when it covers a hundred, and a great deal when it covers a mile. So, too, when operations are limited to the village market, ability has a limited scope, and the able financier does not grow so very much richer than his neighbour. But when his market comprises a nation, his means for acquiring wealth are extended; the rich become richer, and the poor, comparatively at any rate, poorer. Hence, when in the fourteenth and following centuries the national market expands into a world market, we find growing up side by side capitalism and destitution; and the reason why there are so many millionaires and so much destitution to-day, compared with earlier times, is that the world is now one market, and the range of operations is only limited by the globe.

The control of the world's supplies tends to get into the hands of a few big producers or operators instead of being in the hands of a vast number of small ones; and this has come about through ever-expanding markets and ever-increasing specialization. Even whole nations specialize more or less; some produce the corn-supply of the world, some its coal, some its oil, and some do its carrying trade. It is now a question whether there should not be some limits to this process, and it is asked whether a nation or empire should not be self-supporting, irrespective of the economic advantages of expansion and specialization, and of the fact that the more self-supporting it is, the less trade can it do with others; for it cannot export unless it imports, and if each nation makes everything it wants itself it will neither sell to, nor buy from, other nations.

There have been two periods in English history during which these general tendencies have been especially marked. One was at the close of the Middle Ages, and the other during the reign of George III. The break-up of the manorial system, the growth of a body of mobile labour, and of capital

seeking investment, the discovery of new worlds and new markets, heralded the advent of the middle class and of the commercial age. Custom, which had regulated most things in the Middle Ages, gave way to competition, which defied all regulation; and England became a nation of privateers, despoiling the church, Spain, Ireland, and often the commonwealth itself. Scores of acts against fraudulent manufacturers and against inclosures were passed in vain, because they ran counter to economic conditions. The products of the new factories, like Jack of Newbury's kerseys, could not equal in quality the older home-made article, because the home-made article was produced under non-economic conditions. Spinsters today knit better garments than those turned out in bulk, because neither time nor money is any consideration with them; they knit for occupation, not for a living, and they can afford to devote more labour to their produce than they could possibly do if they depended upon it for subsistence. The case was the same with the home-products of earlier times, and compared with them the newer factory-product was shoddy; because, if the manufacturer was to earn a living from his industry he must produce a certain quantity within a limited time. These by-products of the home were enabled to hold their own against the factory products until the development of machinery in the eighteenth century; and until that time the factory system, although factories existed on a rudimentary scale, did not fully develop. So far as it did develop, it meant an increase in the efficiency and in the total wealth of the nation, but a decrease in the prosperity of thousands of individual households.

The effect of inclosures was very similar. The old system of the villagers cultivating in turn strips of land in open fields was undoubtedly unsound, if the amount of wealth produced is the sole criterion; but it produced enough for the individual village-community, and the increased production accruing from inclosures went to swell the total wealth of the nation and of those who manipulated it at the cost of the tillers of the soil. The cost to the

community was potential rather than actual; common lands which are now worth millions were appropriated by landlords in defiance of the law. This illegality was remedied in 1549, not by stopping the inclosures but by making them legal, provided that "sufficient" commons were left; if the incloser considered his leavings enough, the gainsaying of the tenants was to be ignored, or punished as treason or felony in case of persistence. England, however, was still fairly big for its three or four millions of souls, and an Act of Queen Elizabeth provided that every new cottage built should stand in four acres of its own. This anticipation of the demand for three acres and a cow did something to check excessive specialization; for the tenants of these cottages added a little cultivation on their own account to their occupations as hired labourers or village artisans. In the seventeenth century the land-hunger of the landlords was generally sated by schemes for draining and embanking; and vast tracts of fen and marsh, such as Hatfield Chase and Bedford Level, were thus brought under cultivation.

Commerce rather than industrialism or agriculture is the distinctive feature of English economy during the seventeenth and first half of the eighteenth century. By means of newly developed trade-routes, the East and the West were tapped for such products as tobacco, tea, coffee, cocoa, sugar, rum, spices, oranges, lemons, raisins, currants, silks, cotton, rice, and others with which England had previously somehow or other dispensed; and the principal bone of contention was the carrying trade of the world. Shipbuilding was the most famous English industry; and when Peter the Great visited England, he spent most of his time in the Deptford yards. For some of these imports England paid by her services as carrier; and so far as India was concerned it was a case of robbery rather than exchange. But exports were more and more required to pay for the ever-increasing imports. It is impossible to state categorically either that the imports provoked the exports or the exports the imports; for the supply creates the demand as much as the demand creates the supply. There can have been no

conscious demand for tobacco in England before any Englishman had smoked a pipe; and when an English merchant in Elizabeth's reign took a thousand kerseys to Bokhara, he did so without waiting for an order. Both exports and imports, however, can only develop together; the dimensions to which English commerce had attained by Walpole's time involved exports as well as imports; and the exports could not have been provided without developing English industries.

In particular, England had to export to the colonies because the colonies had by the Navigation Acts to export to England; and Walpole's abolition or reduction of duties on colonial produce illustrated and encouraged the growth of this trade. In return for colonial tobacco, rice, cotton, sugar, England sent chiefly woollen and afterwards cotton manufactures. These woollens had long been manufactured on the domestic system in the sheep-rearing districts of England, particularly Yorkshire; many a cottage with its four acres for farming had also its spinning-wheel, and many a village its loom; and the cloth when finished was conveyed by pack-horses or waggons to the markets and fairs to be sold for export or home consumption. But between 1764 and 1779 a series of inventions by Arkwright, Hargreaves, and Crompton, transformed the simple spinning-wheel into an elaborate machine capable of doing the work of many spinners; and once more an advance in national productivity was made at the expense of the individual workers who took to breaking the machines to stop their loss of work.

Similar changes followed in cotton-spinning and other industries, and the result was to alter the whole economic structure of England. The cottager could not afford the new and expensive machinery, and his spinning-wheels and hand-loom were hopelessly beaten in the competition. Huge factories were required for the new inventions, where the workers were all huddled together instead of working in their scattered homes; and large populations

grew up around these new and artificial manufacturing centres. Their locality was, however, determined by natural causes; at first water-power was the best available force to drive the new machines, and consequently towns sprang up along the banks of rivers. But Watt's application of steam-power to machinery soon supplanted water; and for steam-power coal and iron were the greatest necessities. Factories therefore tended to congregate where coal and iron were found; and the need for these materials created the coal and iron industries. Moreover, the pack-horse, the waggon, and the old unmetalled roads soon proved inadequate for the new requirements of transport. For a time canals became the favourite substitute, and many were constructed. Then Macadam invented his method of making roads; finally, Stephenson developed the steam locomotive, and the railway system came into existence.

Closely connected with these changes was a renewal of the inclosure movement. The introduction of turnips and other roots, and the development of the rotation of crops increased the value of the soil and revived the stimulus to inclosure; and hundreds of inclosure acts were hurriedly passed by a parliament which contained no representatives of those who suffered from the process. It was assisted by the further specialization consequent upon the industrial revolution; while the agricultural labourer gave up spinning under the stress of factory competition, the spinner deserted his cottage and four acres in the country, to seek a dwelling near the factory which employed him; and the Elizabethan Act, insisting upon the allocation of four acres to each new cottage built, was repealed. But for that repeal, factory slums would be garden cities, unless the incubus of this provision had stopped the factory development. The final result of the inclosure movement upon the country was to deprive the public of most of its commons and open spaces, to deprive the agricultural labourer of all right in the soil he tilled, and to rob

him of that magic of property which, in Arthur Young's phrase, turned sand into gold.

The inevitable adjustment of the population to these altered economic conditions entirely changed its distribution. Hitherto the progressive and predominant parts of England had been the south and east; conservatism found its refuge in the north and west, which rebelled against the Tudors and fought for Charles I. The south and east had been the manufacturing centres because iron was smelted with wood and not with coal. Now that coal was substituted for wood, the juxtaposition of coal and iron mines in the north attracted thither the industries of the nation, while the special features of its climate made South Lancashire the home of cotton-spinning. The balance of population and political power followed. To-day southern England, apart from London and some other ports, hardly does more than subsist, and its occupations are largely parasitic. The work and the wealth and the trade which support the empire and its burdens have their origin and being in the north.

The population not only shifted, but rapidly increased. The uprooting of peasants from their little plots of land which acted in medieval England and acts to-day in France as a check upon breeding, and their herding in crowded tenements, weakened both moral and prudential restraints in the towns; while in the country the well-meant but ill-considered action of the justices of the peace in supplementing the beggarly wages of the labourers by grants out of the rates proportioned to the number of each man's children produced a similar effect. The result was an increase in the population welcome to patriots who hoped for hordes of soldiers and sailors to fight Napoleon, but startling to economists like Malthus, who inferred therefrom a natural law constraining population to outrun the earth's increase. Malthus did not foresee the needs of the empire, nor realize that the rapid growth in the population of his day was largely due to the absence from the

proletariate of a standard of comfort and decency. Without the Industrial Revolution Great Britain would not have been able to people the lands she had marked for her own.

This increase and shifting of the people put the finishing touch to the incongruities of the old political system, in which vast centres of population teeming with life and throbbing with industry were unrepresented, while members sat in parliament for boroughs so decayed that nothing was left of them but a green mound, a park, or a ruined wall. The struggle with the French Revolution and then with Napoleon gave the vested interests a respite from their doom; and for seventeen years after its close the Tories sat, clothed in the departing glories of the war, upon the safety-valve of constitutional reform. Then in 1832, after one general election fought on this issue, and after further resistance by the House of Lords on behalf of the liberties of borough-proprietors and faggot-voters, the threat to create peers induced a number to abstain sufficient to ensure the passing of the first Reform Bill. It was a moderate measure to have brought the country to the verge of political revolution; roughly, it disfranchised a number of poor voters, but enfranchised the mass of the middle and lower middle-class. Absolutely rotten boroughs were abolished, but a large number of very small ones were retained, and the representation of the new towns was somewhat grudging and restricted. A more drastic measure, giving the vote to most of the town artisans was—being introduced by a Tory minister, Disraeli, in 1867—passed by the House of Lords without difficulty. The last alteration of the franchise, giving the vote to agricultural labourers was—being introduced by Gladstone in 1884—only passed by the House of Lords at the second time of asking and after an agitation.

Political emancipation was but one of the results of the Industrial Revolution; commercial expansion was another. England had now definitely and decisively specialized in certain industries; she could only do

so by relying upon external sources for her supply of other wants. The more her new industries gave her to export, the more she required to import from customers upon whose wealth her own prosperity depended. In particular, England became dependent upon foreign producers for her food supplies. During the war the foreign supply of corn was so hampered that it was as dear to import as to grow at home; but after the peace the price began to fall, and the farmers and landlords, whose rents depended ultimately upon the price of corn, demanded protection corresponding to that which extensive tariffs on imported articles gave to the manufacturers. The manufacturers, on the other hand, wanted cheap food for their workpeople in order to be able to pay them low wages. As a compromise, the Corn Laws of 1814 and 1828 provided a sliding scale of duties which rose as prices fell, and fell as prices rose, a preference being given to colonial wheat.

The Reform Act of 1832, however, and the rapid increase of manufactures, transferred the balance of power in parliament from the landed to the manufacturing classes; factory hands were persuaded that the repeal of the duties would largely increase the value of their wages; and the failure of the potato-crop in Ireland in 1845-46 rendered an increase of imported food-stuffs imperative. Sir Robert Peel accordingly carried a measure in 1846 providing for the gradual abolition of the corn-duties, saving only a registration duty of one shilling, which was removed some twenty years later. This repeal of the Corn Laws did not appreciably affect the price of corn, the great reduction of which was subsequently effected by the vast expansion of corn-growing areas in the colonies and abroad. But it enormously increased the supply at once, and gradually gave England the full benefit of growing areas and declining prices. It is obvious that the retention of the duty, which had been fixed at 24_s_. 8_d_. in 1828 when the price was 62_s_. or less a quarter, would have prevented prices falling as they subsequently did below the value of the duty; and it is no less

certain that it would have impeded the development of corn-growing districts in the colonies and abroad, and of British imports from, and exports to, them.

The enormous increase in the import of corn helped, in fact, to double British exports within ten years. This was the result of the general freeing of trade, of which the repeal of the Corn Laws was only a part. In the third quarter of the eighteenth century there were hundreds of Acts, covering thousands of pages, on the statute-book, imposing an infinity of chaotic duties on every kind of import; they made the customs costly to collect and easy to evade; and the industry they stimulated most was smuggling. The younger Pitt, influenced by Adam Smith, whose *Wealth of Nations* appeared in 1776, reduced and simplified these duties; but 443 Acts still survived when in 1825 Huskisson and other enlightened statesmen secured their consolidation and reduction to eleven. This Tariff Reform, as its supporters called it, was a step towards Free Trade. Peel gradually adopted its principles, induced partly by the failure of his efforts to use existing duties for purposes of retaliation; and between 1841 and 1846 he abolished the duties on 605 articles and reduced them on 1035 more, imposing a direct income-tax to replace the indirect taxes thus repealed. The process was completed by Gladstone, and what is called Free Trade was established as the fundamental principle of English financial policy.

This does not mean that no duties are imposed on exports or imports; it simply means that such duties as are levied are imposed for the sake of revenue, and to protect neither the consumer from the export of commodities he desires to purchase, nor the manufacturer from the import of those he wishes to make. The great interests connected with land and manufactures had ceased to hang together, and fell separately. Protection of manufactured goods did not long survive the successful attack which manufacturers had levelled against the protected produce of the landlords

and the farmers. The repeal of the Navigation Acts rounded off the system; British shipping, indeed, needed no protection, but the admission of colonial goods free of duty and the removal of the embargo on their trade with foreign countries may not have compensated the colonies for the loss of their preference in the British market. The whole trend of affairs, however, both conscious and unconscious, was to make the world one vast hive of industry, instead of an infinite number of self-sufficient, separate hives; the village market had expanded into the provincial market, the provincial into the national, the national into the imperial, and the imperial into the world market.

We have not by any means exhausted the results of the Industrial Revolution, and most of our social problems may be traced directly or indirectly to this source. Its most general effect was to emphasize and exaggerate the tendency towards specialization. Not only have most workers now but one kind of work; that work becomes a smaller and smaller part of increasingly complex industrial processes; and concentration thereon makes it more and more difficult for the worker to turn to other labour, if his employment fails. The specialist's lack of all-round capacity is natural and notorious. Hence most serious results follow the slightest dislocation of national economy. This specialization has also important psychological effects. A farmer, with his varied outdoor occupations, feels little craving for relief and relaxation. The factory hand, with his attention riveted for hours at a stretch on the wearisome iteration of machinery, requires recreation and distraction: naturally he is a prey to unwholesome stimulants, such as drink, betting, or the yellow press. The more educated and morally restrained, however, seek intellectual stimulus, and the modern popular demand for culture arises largely from the need of something to relieve the grey monotony of industrial labour.

So, too, the problems of poverty, local government, and sanitation have been created or intensified by the Industrial Revolution. It made capitalists of the few and wage-earners of the many; and the tendency of wages towards a minimum and of hours of labour towards a maximum has only been counteracted by painful organization among the workers, and later on by legislation extorted by their votes. Neither the Evangelical nor the Oxford movement proved any prophylactic against the immorality of commercial and industrial creeds. While those two religious movements were at their height, new centres of industrial population were allowed to grow up without the least regard for health or decency. Under the influence of *laissez-faire* philosophy, each wretched slum-dweller was supposed to be capable, after his ten or twelve hours in the factory, of looking after his own and his children's education, his main-drainage, his risks from infection, and the purity of his food and his water-supply. The old system of local government was utterly inadequate and ill adapted to the new conditions; and the social and physical environment of the working classes was a disgrace to civilization pending the reconstruction of society, still incomplete, which the Industrial Revolution imposed upon the country in the nineteenth century.

CHAPTER VIII

A CENTURY OF EMPIRE

1815-1911

The British realms beyond the seas have little history before the battle of Waterloo, a date at which the Englishman's historical education has commonly come to an end; and if by chance it has gone any further, it has probably been confined to purely domestic events or to foreign episodes of such ephemeral interest as the Crimean War. It may be well, therefore, to pass lightly over these matters in order to sketch in brief outline the development of the empire and the problems which it involves. European affairs, in fact, played a very subordinate part in English history after 1815; so far as England was concerned, it was a period of excursions and alarms rather than actual hostilities; and the fortunes of English-speaking communities were not greatly affected by the revolutions and wars which made and marred continental nations, a circumstance which explains, if it does not excuse, the almost total ignorance of European history displayed in British colonies.

The interventions of Britain in continental politics were generally on behalf of the principles of nationality and self-government. Under the influence of Castlereagh and Canning the British government gradually

broke away from the Holy Alliance formed to suppress all protests against the settlement reached after Napoleon's fall; and Britain interposed with decisive effect at the battle of Navarino in 1827, which secured the independence of Greece from Turkey. More diplomatic intervention assisted the South American colonies to assert their independence of the Spanish mother-country; and British volunteers helped the Liberal cause in Spain and Portugal against reactionary monarchs. Belgium was countenanced in its successful revolution against the House of Orange, and Italian states in their revolts against native and foreign despots; the expulsion of the Hapsburgs and Bourbons from Italy, and its unification on a nationalist basis, owed something to British diplomacy, which supported Cavour, and to British volunteers who fought for Garibaldi. The attitude of Britain towards the Balkan nationalities, which were endeavouring to throw off the Turkish yoke, was more dubious; while Gladstone denounced Turkish atrocities, Disraeli strengthened Turkey's hands. Yet England would have been as enthusiastic for a liberated and united Balkan power as it had been for a united Italy but for the claims of a rival liberator, Russia.

Russia was the bugbear of two generations of Englishmen; and classical scholars, who interpreted modern politics by the light of ancient Greece, saw in the absorption of Athens by Macedon a convincing demonstration of the fate which the modern barbarian of the north was to inflict upon the British heirs of Hellas. India was the real source of this nervousness. British dominion, after further wars with the Mahrattas, the Sikhs, and the Gurkhas, had extended up to the frontiers of Afghanistan; but there was always the fear lest another sword should take away dominion won by the British, and in British eyes it was an offence that any other power should expand in Asia. The Russian and British spheres of influence advanced till they met in Kabul; and for fifty years the two powers contested, by more or less diplomatic methods, the control of the Amir of Afghanistan. Turkey flanked the overland route to India; and hence the protection of Turkey against

Russia became a cardinal point in British foreign policy. On behalf of Turkey's integrity Great Britain fought, in alliance with France and Sardinia, the futile Crimean War of 1854-1856, and nearly went to war in 1877.

The opening of the Suez Canal in 1869 introduced a fresh complication. Relations between England and France had since Waterloo been friendly, on the whole; but France had traditional interests in Egypt, which were strengthened by the fact that a French engineer had constructed the Suez Canal, and by French colonies in the Far East, to which the canal was the shortest route. Rivalry with England for the control of Egypt followed. The Dual Control, which was established in 1876, was terminated by the refusal of France to assist in the suppression of Egyptian revolts in 1882; and Great Britain was left in sole but informal possession of power in Egypt, with the responsibility for its defence against the Mahdi (1884-1885) and for the reconquest of the Sudan (1896-1898), which is now under the joint Egyptian and British flags.

Meanwhile, British expansion to the east of India, the Burmese wars, and annexation of Burma (1885) brought the empire into a contact with French influence in Siam similar to its contact with Russian in Afghanistan. Community of interests in the Far East, as well as the need of protection against the Triple Alliance of Germany, Austria, and Italy produced the *entente cordiale* between France and Russia in 1890. Fortunately, the dangerous questions between them and Great Britain were settled by diplomacy, assisted by the alliance between Great Britain and Japan. The British and Russian spheres of action on the north-west, and the British and French spheres to the east, of India were delimited; southern Persia, the Persian Gulf, and the Malay Peninsula were left to British vigilance and penetration, northern Persia to Russian, and eastern Siam to French. Freed

from these causes of friction, Great Britain, Russia, and France exert a restraining influence on the predominant partner in the Triple Alliance.

The development of a vast dominion in India has created for the British government problems, of which the great Indian mutiny of 1857 was merely one illustration. No power has succeeded in permanently governing subject races by despotic authority; in North and South America the natives have so dwindled in numbers as to leave the conquerors indisputably supreme; in Europe and elsewhere in former times the subject races fitted themselves for self-government, and then absorbed their conquerors. The racial and religious gulf forbids a similar solution of the Indian question, while the abandonment of her task by Great Britain would leave India a prey to anarchy. The difficulties of despotic rule were mitigated in the past by the utter absence of any common sentiments and ideas among the many races, religions, and castes which constituted India; and a Machiavellian perpetuation of these divisions might have eased the labours of its governors. But a government suffers for its virtues, and the steady efforts of Great Britain to civilize and educate its Eastern subjects have tended to destroy the divisions which made common action, common aspirations, public opinion and self-government impossible in India. The missionary, the engineer, the doctor, the lawyer, and the political reformer have all helped to remove the bars of caste and race by converting Brahmans, Mohammedans, Parsees to a common Christianity or by undermining their attachment to their particular distinctions. They have built railways and canals, which made communications and contact unavoidable; they have imposed common measures of health, common legal principles, and a common education in English culture and methods of administration. The result has been to foster a consciousness of nationality, the growth of a public opinion, and a demand for a greater share in the management of affairs. The more efficient a despotism, the more certain is its supersession; and the problem for the Indian government is how to adjust and adapt the

political emancipation of the natives of India to the slow growth of their education and sense of moral responsibility. At present, caste and racial and religious differences, especially between Mohammedans and Hindus, though weakening, are powerful disintegrants; not one per cent of the population can read or write; and the existence of hundreds of native states impedes the progress of national agitation.

A somewhat similar problem confronts British administration in Egypt, where the difficulty of dealing with the agitation for national self-government is complicated by the fact that technically the British agent and consul-general is merely the informal adviser of the khedive, who is himself the viceroy of the Sultan of Turkey. Ultimately the same sort of dilemma will have to be faced in other parts of Africa under British rule—British East Africa and Uganda, the Nigerian protectorates and neighbouring districts, Rhodesia and British Central Africa—as well as in the Malay States, Hong Kong, and the West Indies. There are great differences of opinion among the white citizens of the empire with regard to the treatment of their coloured fellow-subjects. Australia and some provinces of the South African Union would exclude Indian immigrants altogether; and white minorities have an invincible repugnance to allowing black majorities to exercise a vote, except under stringent precautions against its effect. We have, indeed, improved upon the Greeks, who regarded all other races as outside the scope of Greek morality; but we do not yet extend to coloured races the same consideration that we do to white men.

So far as the white population of the empire is concerned, the problem of self-government was solved in the nineteenth century by procedure common to all the great dominions of the crown, though the emancipation, which had cost the mother-country centuries of conflict, was secured by many colonies in less than fifty years. Three normal stages marked their progress, and Canada led the way in each. The first was the acquisition of

representative government—that is to say, of a legislature consisting generally of two Houses, one of which was popularly elected but had little control over the executive; the second was the acquisition of responsible government—that is to say, of an executive responsible to the popular local legislature instead of to the home Colonial Office; and the third was federation. Canada had possessed the first degree of self-government ever since 1791 (see p. 169), and was rapidly outgrowing it. Australia, however, did not pass out of the crown colony stage, in which affairs are controlled by a governor, with or without the assistance of a nominated legislative council, until 1842, when elected members were added to the council of New South Wales, and it was given the power of the purse. This development was due to the exodus of the surplus population, created by the Industrial Revolution, from Great Britain, which began soon after 1820, and affected Canada, Australia, New Zealand, and South Africa. Various companies and associations were founded under the influence of Lord Durham, Edward Gibbon Wakefield, and others, for the purpose of settling labourers in these lands. Between 1820 and 1830 several settlements were established in Western Australia, in 1836 South Australia was colonized, and gradually Victoria, Queensland, and Tasmania were organized as independent colonies out of offshoots from the parent New South Wales. Each in turn received a representative assembly, and developed individual characteristics.

Cape Colony followed on similar lines, variegated by the presence of a rival European race, the Dutch. Slowly, in the generation which succeeded the British conquest, they accumulated grievances against their rulers. English was made the sole official language; Dutch magistrates were superseded by English commissioners; slavery was abolished, with inadequate compensation to the owners; little support was given them in their wars with the natives, which the home government and the missionaries, more interested in the woes of negroes in South Africa than in

those of children in British mines and factories, attributed to Dutch brutality; and a Hottentot police was actually established. In 1837 the more determined of the Dutch "trekked" north and east to found republics in Natal, the Orange River Free State, and the Transvaal. Purged of these discontented elements, the Cape was given representative government in 1853, and Natal, which had been annexed in 1844, received a similar constitution in 1856.

Meanwhile, Canada had advanced through constitutional struggles and open rebellion to the second stage. It had received its baptism of fire during the war (1812-1814) between Great Britain and the United States, when French and British Canadians fought side by side against a common enemy. But both provinces soon experienced difficulties similar to those between the Stuarts and their parliaments; their legislative assemblies had no control over their executive governments, and in 1837 Papineau's rebellion broke out in Lower, and Mackenzie's in Upper, Canada. Lord Durham was sent out to investigate the causes of discontent, and his report marks an epoch in colonial history. The idea that the American War of Independence had taught the mother-country the necessity of granting complete self-government to her colonies is a persistent misconception; and hitherto no British colony had received a fuller measure of self-government than had been enjoyed by the American colonies before their Declaration of Independence. The grant of this responsible self-government was one of the two principal recommendations of Lord Durham's report. The other was the union of the two provinces, which, it was hoped, would give the British a majority over the French. This recommendation, which ultimately proved unworkable, was carried out at once; the other, which has been the saving of the empire, was left for Lord Elgin to elaborate. He made it a principle to choose as ministers only those politicians who possessed the confidence of the popular assembly, and his example, followed by his successors, crystallized into a fundamental maxim of British colonial government. It

was extended to Nova Scotia and New Brunswick in 1848, and to Newfoundland (which had in 1832 received a legislative assembly) in 1855.

To Lord John Russell, who was prime minister from 1846 to 1851, to his colonial secretary, the third Earl Grey, and to Lords Aberdeen and Palmerston, who succeeded as premiers in 1852 and 1855, belongs the credit of having conferred full rights of self-government on most of the empire's oversea dominions. Australia, where the discovery of gold in 1851 added enormously to her population, soon followed in Canada's wake, and by 1856 every Australian colony, with the exception of Western Australia, had, with the consent of the Imperial parliament, worked out a constitution for itself, comprising two legislative chambers and a responsible cabinet. New Zealand, which had begun to be sparsely settled between 1820 and 1840, and had been annexed in the latter year, received in 1852 from the Imperial parliament a Constitution Act, which left it to Sir George Grey, the Governor, to work out in practice the responsibility of ministers to the legislature. Other colonies were slower in their constitutional development; Cape Colony was not granted a responsible administration till 1872; Western Australia, which had continued to receive convicts after their transportation to other Australian colonies had been successfully resisted, did not receive complete self-government till 1890, and Natal not until 1893.

The latest British colonies to receive this livery of the empire were the Transvaal and the Orange River colonies. A chequered existence had been their fate since their founders had trekked north in 1837. The Orange River Free State had been annexed by Britain in 1848, had rebelled, and been granted independence again in 1854. The Transvaal had been annexed in 1877, had rebelled, and had been granted almost complete independence again after Majuba in 1881. The Orange Free State, relieved of the diamond fields which belonged to it in the neighbourhood of Kimberley in 1870,

pursued the even tenor of its way; but the gold mines discovered in the Transvaal were not so near its borders, and gave rise to more prolonged dissensions. Crowds of cosmopolitan adventurers, as lawless as those who disturbed the peace in Victoria or California, flocked to the Rand. They were not of the stuff of which Dutch burghers were made, and the franchise was denied them by a government which did not hesitate to profit from their labours. The Jameson Raid, a hasty attempt to use their wrongs to overthrow President Kruger's government in 1895, "upset the apple-cart" of Cecil Rhodes, the prime minister of the Cape, who had added Rhodesia to the empire and was planning, with moderate Dutch support, to federate South Africa. Kruger hardened his heart against the Uitlanders, and armed himself to resist the arguments of the British government on their behalf. Both sides underestimated the determination and resources of the other. But Kruger was more ignorant, if not more obstinate, than Mr. Chamberlain; and his ultimatum of October 1899 precipitated a war which lasted two years and a half, and cost the two republics their independence. The Transvaal was given, and the Orange River Colony was promised, representative government by the Conservatives; but the Liberals, who came into power at the end of 1905, excused them this apprenticeship, and granted them full responsible government in 1906-1907.

British colonies have tried a series of useful experiments with the power thus allotted them of managing their own affairs, and have contributed more to the science of politics than all the arm-chair philosophers from Aristotle downwards; and an examination in their results would be a valuable test for aspiring politicians and civil servants. The Canadian provinces, with two exceptions, dispense with a second chamber; elsewhere in the empire, second chambers are universal, but nowhere outside the United Kingdom hereditary. Their members are either nominated by the prime minister for life, as in the Dominion of Canada, or for a term of years, which is fixed at seven in New Zealand; or they are popularly elected, sometimes on a

different property qualification from the Lower House, sometimes for a different period, sometimes by a different constituency. In the Commonwealth of Australia they are chosen by each state voting as a whole, and this method, by which a big majority in one locality outweighs several small majorities in others, has sometimes resulted in making the Upper House more radical and socialistic than the Lower; the system of nomination occasionally has in Canada a result equally strange to English ideas, for the present Conservative majority in the House of Commons is confronted with a hostile Liberal majority in the Upper House, placed there by Sir Wilfrid Laurier during his long tenure of office. The most effective provision against deadlocks between the two Houses is one in the constitution of the Australian Commonwealth, by which, if they cannot agree, both are dissolved.

Other contrasts are more bewildering than instructive. In Canada the movement for women's suffrage has made little headway, and even less in South Africa; but at the Antipodes women share with men the privilege of adult suffrage in New Zealand, in the Commonwealth of Australia, and in every one of its component states; an advocate of the cause would perhaps explain the contrast by the presence of unprogressive French in Canada, and of unprogressive Dutch in South Africa. Certainly, the all-British dominions have been more advanced in their political experiments than those in which the flighty Anglo-Saxon has been tempered by more stolid elements; and the pendulum swings little more in French Canada than it does in Celtic Ireland. In New Zealand old age pensions were in force long before they were introduced into the mother-country; and compulsory arbitration in industrial disputes, payment of M.P.'s, and powers of local option and prohibition have been for years in operation. Both the Dominion and the Commonwealth levy taxes on land far exceeding those imposed by the British budget of 1909. Australia is, in addition, trying a socialistic labour ministry and compulsory military training. It has also tried the more

serious experiment of developing a standard of comfort among its proletariat before peopling the country; and is consequently forced to exclude by legislation all sorts of cheap labour, which might develop its industries but would certainly lower its level of wages. It believes in high protection, but takes care by socialistic legislation that high wages shall more than counterbalance high prices; protection is to it merely the form of state socialism which primarily benefits the employer. It has also nationalized its railways and denationalized all churches and religious instruction in public schools. There is, indeed, no state church in the empire outside Great Britain. But the most significant, perhaps, of Antipodean notions is the doctrine, inculcated in the Queensland elementary schools, of the sanctity of state property.

Finally, the colonies have made momentous experiments in federation. New Zealand's was the earliest and the briefest; after a few years' experience of provincial governments between 1852 and 1870, it reduced its provincial parliaments to the level of county councils, and adopted a unitary constitution. In Canada, on the other hand, the union of the Upper and Lower Provinces proved unworkable owing to racial differences; and in 1867 the federation called the Dominion of Canada was formed by agreement between Upper and Lower Canada (henceforth called Ontario and Quebec), New Brunswick, and Nova Scotia. Prince Edward Island and British Columbia joined soon afterwards; and fresh provinces have since been created out of the Hudson Bay and North-west Territories; Newfoundland alone has stood aloof. Considerable powers are allotted to the provinces, including education; but the distinguishing feature of this federation is that all powers not definitely assigned by the Dominion Act to the provinces belong to the Dominion. This is in sharp contrast to the United States, where each individual state is the sovereign body, and the Federal government only possesses such powers as the states have delegated to it by the constitution.

In this respect the Australian federation called the Commonwealth, which was formed in 1900, resembles the United States rather than Canada. The circumstance that each Australian colony grew up round a seaport, having little or no overland connexion with other Australian colonies, kept them long apart; and the commercial interests centred in these ports are still centrifugal rather than centripetal in sentiment. Hence powers, not specifically assigned to the Federal government, remain in the hands of the individual states; the Labour party, however, inclines towards a centralizing policy, and the general trend seems to be in that direction. It will probably be strengthened by the construction of transcontinental railways and by a further growth of the nationalist feeling of Australia, which is already marked.

The Union of South Africa, formed in 1909, soon after the Boer colonies had received self-government, went almost as far towards unification as New Zealand, and became a unitary state rather than a federation. The greater expense of maintaining several local parliaments as well as a central legislature, and the difficulty of apportioning their powers, determined South African statesmen to sweep away the old legislatures altogether, and to establish a united parliament which meets at Cape Town, a single executive which has its offices at Pretoria, and a judicature which is located at Bloemfontein. Thus almost every variety of Union and Home Rule exists within the empire, and arguments from analogy are provided for both the British political parties.

Two extremes have been, and must be, avoided. History has falsified the impression prevalent in the middle of the nineteenth century that the colonies would sooner or later follow the example of the United States, and sever their connexion with the mother-country. It has no less clearly demonstrated the impossibility of maintaining a centralized government of the empire in Downing Street. The union or federation of Canada, Australia,

New Zealand, and South Africa has strengthened the claims of each of those imperial realms to be considered a nation, with full rights and powers of self-government; and it remains to be seen whether the federating process can be carried to a higher level, and imperial sentiment crystallized in Imperial Federation. Imperial Conferences have become regular, but we may not call them councils; no majority in them has power to bind a minority, and no conference can bind the mother-country or a single dominion of the crown. As an educational body the Imperial Conference is excellent; but no one would venture to give powers of taxation or of making war and peace to a conclave in which Great Britain, with its forty-four millions of people and the navy and army it supports, has no more votes than Newfoundland, with its quarter of a million of inhabitants and immunity from imperial burdens.

Education is, however, at the root of all political systems. Where the mass of the people know nothing of politics, a despotism is essential; where only the few are politically educated, there needs must be an aristocracy. Great Britain lost its American colonies largely through ignorance; and no imperial organization could arise among a group of states ignorant of each other's needs, resources, and aspirations. The Imperial Conference is not to be judged by its meagre tangible results; if it has led British politicians to appreciate the varying character and depth of national feeling in the Dominions, and politicians oversea to appreciate the delicacies of the European diplomatic situation, the dependence of every part of the empire upon sea-power, and the complexities of an Imperial government which has also to consider the interests of hundreds of millions of subjects in India, in tropical Africa, in the West Indies, and in the Pacific, the Conference will have helped to foster the intellectual conditions which must underlie any attempt at an imperial superstructure.

For the halcyon days of peace, prosperity, and progress can hardly be assumed as yet, and not even the most distant and self-contained Dominions can afford to ignore the menace of blood and iron. No power, indeed, is likely to find the thousand millions or so which it would cost to conquer and hold Canada, Australia, or South Africa; but a lucky raid on their commerce or some undefended port might cost many millions by way of ransom. A slackening birth-rate is, moreover, a reminder that empires in the past, like that of Rome, have civilized themselves out of existence in the competition with races which bred with primitive vigour, and had no costly standards of comfort. There are such races to-day; the slumbering East has awakened, and the tide which flowed for four centuries from West to East is on the turn. The victory of Japan over Russia was an event beside which the great Boer War sinks into insignificance. Asiatics, relieved by the *Pax Britannica* from mutual destruction, are eating the whites out of the islands of the Pacific and Indian Oceans, and threatening South Africa, Australia, and the western shores of America. No armaments and no treaties of arbitration can ward off their economic competition; and it is not certain that their myriads, armed with Western morality and methods of warfare, will be always content to refrain from turning against Europe the means of expansion which Europe has used with so much success against them. The British Empire will need all the wisdom it can command, if it is to hold its own in the parliament of reason or the arbitrament of war.

CHAPTER IX

ENGLISH DEMOCRACY

The modern national state is the most powerful political organism ever known, because it is the conscious or unconscious agency of a people's will. Government is no longer in England the instrument of a family or a class; and the only real check upon its power is the circumstance that in some matters it acts as the executive committee of one party and is legitimately resisted by the other. Were there no parties, the government would be a popular despotism absolutely uncontrolled. Theoretically it is omniscient; parliament—or, to use more technical phraseology, the Crown in Parliament—can make anything law that it chooses; and no one has a legal right to resist, or authority to pronounce what parliament has done to be unconstitutional. No Act of Parliament can be illegal or unconstitutional, because there are no fundamental laws and no written constitution in this country; and when people loosely speak of an Act being unconstitutional, all that they mean is that they do not agree with it. Other countries, like the United States, have drawn up a written constitution and established a Supreme Court of Judicature to guard it; and if the American legislature violates this constitution by any Act, the Supreme Court may declare that Act unconstitutional, in which case it is void. But there is no such limitation in England upon the sovereignty of parliament.

This sovereignty has been gradually evolved. At first it was royal and personal, but not parliamentary or representative; and medieval kings had to struggle with the rival claims of the barons and the church. By calling in the assistance of the people assembled and represented in parliament, the monarchy triumphed over both the barons and the church; but when, in the seventeenth century, the two partners to this victory quarrelled over the spoils, parliament and not the crown established its claim to be the real representative of the state; and in the cases of Strafford, Danby, and others it even asserted that loyalty to the king might be treason to the state. The church, vanquished at the Reformation, dropped more and more out of the struggle for sovereignty, because, while the state grew more comprehensive, the church grew more exclusive. It was not that, after 1662, it seriously narrowed its formulas or doctrines, but it failed to enlarge them, and a larger and larger proportion of Englishmen thus found themselves outside its pale. The state, on the other hand, embraced an ever-widening circle of dissent; and by degrees Protestant Nonconformists, Roman Catholics, Quakers, Jews, Atheists, Mohammedans, believers, misbelievers, and unbelievers of all sorts, were admitted to the fullest rights of citizenship. State and church ceased to correspond; one became the whole, the other only a part, and there could be no serious rivalry between the two.

The state had to contend, however, with more subtle and serious attacks. This great Leviathan, as Hobbes called it, was not at first a popular institution; and it frightened many people. The American colonists, for instance, thought that its absolute sovereignty was too dangerous a thing to be left loose, and they put sovereignty under a triple lock and key, giving one to the judicature, one to the legislature, and a third to the executive. Only by the co-operation of these three keepers can the American people loose their sovereignty and use it to amend their constitution; and so jealously is sovereignty confined that anarchy often seems to reign in its stead. There was, indeed, some excuse for distrusting a sovereignty claimed

by George III and the unreformed British parliament; and it was natural enough that people should deny its necessity and set up in its place Declarations of the Rights of Man. Sovereignty of Hobbes's type was a somewhat novel conception; men had not grasped its possibilities as an engine of popular will, because they were only familiar with its exploitation by kings and oligarchs; and so closely did they identify the thing with its abuses that they preferred to do without it altogether, or at least to confine it to the narrowest possible limits. Government and the people were antagonistic: the less government there was, the less harm would be done to the people, and so a general body of individualistic, *laissez-faire* theory developed, which was expressed in various Declarations of the Rights of Man, and set up against the "paternal despotism" of the eighteenth century.

These Rights of Man helped to produce alike the anarchy of the first French Revolution and the remedial despotism of the Jacobins and their successor Napoleon; and the oscillation between under-government and over-government, between individualism and socialism has continued to this day. Each coincides with obvious human interests: the blessed in possession prefer a policy of *laissez faire*; they are all for Liberty and Property, enjoying sufficient means for doing whatsoever they like with what they are pleased to call their own. But those who have little to call their own, and much that they would like, prefer strong government if they can control it; and the strength of government has steadily grown with popular control. This is due to more than a predatory instinct; it is natural, and excusable enough, that people should be reluctant to maintain what is no affair of theirs; but even staunch Conservatives have been known to pay Radical taxes with comparative cheerfulness when their party has returned to power.

Government was gradually made the affair of the people by the series of Reform Acts extending from 1832 to 1885; and it is no mere accident that

this half-century also witnessed the political emancipation of the British colonies. Nor must we forget the Acts beginning with the repeal of the Test and Corporation Acts (1828) and Roman Catholic Emancipation (1829), which extended political rights to men of all religious persuasions. These and the Franchise Acts made the House of Commons infinitely more representative than it had been before, and gave it its conclusive superiority over the House of Lords. Not that the Peers represent no one but themselves; had that been true, the House of Lords would have disappeared long ago. In reality it came to embody a fairly complete representation of the Conservative party; and as a party does not need two legislative organs, the House of Lords retired whenever the Conservatives controlled the House of Commons, and only resumed its proper functions when the Liberals had a majority. Hence its most indefensible characteristic as a Second Chamber became its strongest practical bulwark; for it enlisted the support of many who had no particular views about Second Chambers in the abstract, but were keenly interested in the predominance of their party.

The restraint thus imposed by the House of Lords upon popular government checked the development of its power and the extension of its activity, which would naturally have followed upon the acquisition by the people of control over the House of Commons and indirectly over the Cabinet. Other causes co-operated to induce delay. The most powerful was lack of popular education; constitutional privileges are of no value to people who do not understand how they may be used, or are so unimaginative and ill-disciplined as to prefer such immediate and tangible rewards as a half-crown for their vote, a donation to their football club or local charity, or a gracious word from an interested lady, to their distant and infinitesimal share in the direction of national government. This participation is, in fact, so minute to the individual voter and so intangible in its operation, that a high degree of education is required to appreciate its value; and the Education Acts of 1870 and 1889 were indispensable preliminaries to

anything like a real democracy. A democracy really educated in politics will express views strange to our ears with an emphasis of which even yet we have little conception.

Other obstacles to the overthrow of the rule of *laissez faire* were the vested interests of over-mighty manufacturers and landlords in the maintenance of that anarchy which is the logical extreme of Liberty and Property; and such elementary measures of humanity as the Factory Acts were long resisted by men so humane as Cobden and John Bright as arbitrary interventions with the natural liberty of man to drive bargains with his fellows in search of a living wage. There seemed to be no idea that economic warfare might be quite as degrading as that primitive condition of natural war, in which Hobbes said that the life of man was "nasty, short, brutish and mean," and that it might as urgently require a similar sovereign remedy. The repugnance to such a remedy was reinforced by crude analogies between a perverted Darwinism and politics. Darwin's demonstration of evolution by means of the struggle for existence in the natural world was used to support the assumption that a similar struggle among civilized men was natural and therefore inevitable; and that all attempts to interfere with the conflict between the weak and the strong, the scrupulous and the unscrupulous, were foredoomed to disastrous failure. It was forgotten that civilization itself involves a more or less conscious repeal of "Nature," and that the progress of man depends upon the conquest of himself and of his surroundings. In a better sense of the word, the evolution of man's self-control and conscience is just as "natural" as the gratification of his animal instincts.

The view that each individual should be left without further help from the state to cope with his environment might be acceptable to landlords who had already obtained from parliament hundreds of Inclosure Acts, and to manufacturers whose profits were inflated by laws making it criminal for

workmen to combine. They might rest from political agitation and be thankful for their constitutional gains; at any rate they had little to hope from a legislature in which working men had votes. But the masses, who had just secured the franchise, were reluctant to believe that the action of the state had lost its virtue at the moment when the control of the state came within their grasp. The vote seems to have been given them under the amiable delusion that they would be happy when they got it, as if it had any value whatever except as a means to an end. Nor is it adequate as a means: it is not sufficient for a nation by adult suffrage to express its will; that will has also to be carried into execution, and it requires a strong executive to do so. Hence the reversal of the old Liberal attitude towards the royal prerogative, which may be best dated from 1872, when Gladstone abolished the purchase of commissions in the army by means of the royal prerogative, after the proposed reform had been rejected as a bill by the House of Lords. No Liberal is likely in the future to suggest that "the influence of the crown has increased, is increasing, and ought to be diminished"; because the prerogative of the crown has become the privilege of the people.

The Franchise Acts had apparently provided a solution of the old antithesis of Man *versus* the State by comprehending all men *in* the state; and the great value of those reforms was that they tended to eliminate force from the sphere of politics. When men could vote, there was less reason in rebellion; and the antithesis of Man *versus* the State has almost been reduced to one of Woman *versus* the State. But representative government, which promised to be ideal when every man, or every adult, had a vote, is threatened in various quarters. Its operations are too deliberate and involved to satisfy impatient spirits, and three alternative methods of procedure are advocated as improvements upon it. One is the "direct action" of working men, by which they can speedily obtain their objects through a general or partial strike paralyzing the food supply or other national necessities. This is obviously a dangerous and double-edged weapon, the adoption of which by

other sections of the community—the Army and Navy, for instance, or the medical profession—might mean national dissolution.

Another method is the Referendum, by which important decisions adopted by parliament would be referred to a direct popular vote. This proposal is only logical when coupled with the Initiative, by which a direct popular vote could compel parliament to pass any measure desired by the majority of voters; otherwise its object is merely obstructive. The third method is the supersession of parliament by the action of the executive. The difficulties which Liberal measures have experienced in the House of Lords, and the impossibility of the House of Commons dealing by debate with the increasing complexities of national business, have encouraged a tendency in Liberal governments to entrust to their departments decisions which trench upon the legislative functions of parliament. The trend of hostile opinion is to regard parliament as an unnecessary middleman, and to advocate in its stead a sort of plebiscitary bureaucracy, a constitution under which legislation drafted by officials would be demanded, sanctioned, or rejected by direct popular vote, and would be discussed, like the Insurance Bill, in informal conferences outside, rather than inside, parliament; while administration by a vast army of experts would be partially controlled by popularly elected ministers; for socialists waver between their faith in human equality and their trust in the superman. Others think that the milder method of Devolution, or "Home Rule all round," would meet the evils caused by the congestion of business, and restore to the Mother of Parliaments her time-honoured function of governing by debate.

Parliament has already had to delegate legislative powers to other bodies than colonial legislatures; and county councils, borough councils, district councils, and parish councils share with it in various degrees the task of legislating for the country. They can, of course, only legislate, as they can only administer, within the limits imposed by Act of Parliament; but their

development, like the multiplication of central administrative departments, indicates the latest, but not the final, stages in the growth and specialization of English government. A century and a half ago two Secretaries of State were all that Great Britain required; now there are half-a-dozen, and a dozen other departments have been added. Among them are the Local Government Board, the Board of Education, the Board of Trade, the Board of Agriculture, while many sub-departments such as the Public Health Department of the Local Government Board, the Bankruptcy Department of the Board of Trade, and the Factory Department of the Home Office, have more work to do than originally had a Secretary of State. It is probable, moreover, that departments will multiply and subdivide at an ever-increasing rate.

All this, however, is merely machinery provided to give effect to public opinion, which determines the use to which it shall be put. But its very provision indicates that England expects the state to-day to do more and more extensive duty for the individual. For one thing the state has largely taken the place of the church as the organ of the collective conscience of the community. It can hardly be said that the Anglican church has an articulate conscience apart from questions of canon law and ecclesiastical property; and other churches are, as bodies, no better provided with creeds of social morality. The Eighth Commandment is never applied to such genteel delinquencies as making a false return of income, or defrauding a railway company or the customs; but is reserved for the grosser offences which no member of the congregation is likely to have committed; and it is left to the state to provide by warning and penalty against neglect of one's duty to one's neighbour when one's neighbour is not one individual but the sum of all. It was not by any ecclesiastical agitation that some humanity was introduced into the criminal code in the third decade of the nineteenth century; and the protest against the blind cruelty of economic *laissez faire* was made by Sadler, Shaftesbury, Ruskin, and Carlyle rather than by any

church. Their writings and speeches awoke a conscience in the state, which began to insist by means of legislation upon humaner hours and conditions of labour, upon decent sanitation, upon a standard of public education, and upon provision being made against fraudulent dealings with more helpless fellow-men.

This public conscience has inevitably proved expensive, and the expense has had to be borne either by the state or by the individual. Now, it might have been possible, when the expense of these new standards of public health and comfort began to be incurred, to provide by an heroic effort of socialism for a perpetuation of the individualistic basis of social duty. That is to say, if the state had guaranteed to every individual an income which would enable him to bear his share of this expense, it might also have imposed upon him the duty of meeting it, of paying fees for the education of his children, for hospital treatment, for medical inspection, and so forth. But that effort was not, and perhaps could not, in the existing condition of public opinion, be made; and the state has therefore got into the habit of providing and paying for all these things itself. When the majority of male adults earn twenty shillings or less a week, and possess a vote, there would be no raising of standards at all, if they had to pay the cost. Hence the state has been compelled step by step to meet the expense of burdens imposed by its conscience. Free education has therefore followed compulsory education; the demands of sanitary inspectors and medical officers of health have led to free medical inspection, medical treatment, the feeding of necessitous school children, and other piecemeal socialism; and, ignoring the historical causes of this development, we are embarked on a wordy warfare of socialists and individualists as to the abstract merits of antagonistic theories.

It is mainly a battle of phrases, in which few pause to examine what their opponents or they themselves mean by the epithets they employ. In the

sense in which the individualist uses the term socialist, there are hardly any socialists, and in the sense in which the socialist uses the term individualist, there are practically no individualists. In reality we are all both individualists and socialists. It is a question of degree and not of dogma; and most people are at heart agreed that some economic socialism is required in order to promote a certain amount of moral and intellectual individualism. The defect of so-called economic individualism is that it reduces the mass of workers to one dead level of common poverty, in which wages, instead of increasing like capital, barely keep pace with the rise of rent and prices, in which men occupy dwellings all alike in the same mean streets, pursuing the same routine of labour and same trivial round of relaxation, and in which there seems no possibility of securing for the individual adequate opportunities for that development of his individuality by which alone he can render his best service to the community.

That service is the common end and object towards which men of all parties in English history have striven through the growth of conscious and collective action. A communist has maintained that we are all communists because we have developed a common army, a common navy, and a common national government, in place of the individualistic forces and jurisdictions of feudal barons. We have, indeed, nationalized these things and many others as well, including the crown, the church, the administration of justice, education, highways and byways, posts and telegraphs, woods and forests. Even the House of Lords has been constrained to abandon its independence by a process akin to that medieval *peine forte et dure*, by which the obstinate individualist was, when accused, compelled to surrender his ancient immunity and submit to the common law; and this common control, which came into being as the nation emerged out of its diverse elements in the thirteenth and fourteenth centuries, and slowly gathered force as it realized its strength under the Tudors, has attained fresh momentum in the latest ages as the state step by step

extended to all sorts and conditions of men a share in the exercise of its power.

This is the real English conquest, and it forms the chief content of English history. It is part of the triumph of man over the forces of nature and over himself, and the two have gone hand in hand. An English state could hardly exist before men had made roads, but it could no more exist until they had achieved that great victory of civilized government by which a minority agrees for the sake of peace to submit to the greater number. Steam and railways and telegraphs have placed further powers in the hands of men; they have conquered the land and the sea and the air; and medical science has built up their physique and paved the way for empire in tropical climes. But while he has conquered nature, man has also conquered himself. He has tamed his combative instincts; he has reduced civil strife to political combats, restrained national conflicts by treaties of arbitration, and subdued private wars to judicial proceedings; it is only in partially civilized countries that gentlemen cannot rule their temper or bend their honour to the base arbitrament of justice. He looks before and after, and forgoes the gratification of the present to insure against the accidents of the future, though the extent to which the community as a whole can follow the example of individuals in this respect remains at the moment a test of its self-control and sense of collective responsibility.

Whether this growth of power in the individual and in the state is a good or an evil thing depends on the conscience of those who wield it. The power of the over-mighty subject has generally been a tyranny; and all power is distrusted by old-fashioned Liberals and philosophic Anarchists, because they have a traditional suspicion that it will fall into hostile or unscrupulous hands. But the forces of evil cannot be overcome by *laissez faire*, and power is an indispensable weapon of progress. A powerless state means a helpless community; and anarchy is the worst of all forms of tyranny,

because it is irresponsible, incorrigible, and capricious. Weakness, moreover, is the parent of panic, and panic brings cruelty in its train. So long as the state was weak, it was cruel; and the hideous treason-laws of Tudor times were due to fear. The weak cannot afford to be tolerant any more than the poor can afford to be generous. Cecil thought that the state could not afford to tolerate two forms of religion; to-day it tolerates hundreds, and it laughs at treason because it is strong. We are humanitarian, not because we are so much better than our ancestors, but because we can afford the luxury of dissent and conscientious objections so much better than they could. Political liberty and religious freedom depend upon the power of the state, inspired, controlled, and guided by the mind of the community.

Last of all, through this power man has acquired faith, not in miraculous intervention, but in his capacity to work out his own destinies by means of the weapons placed in his hands and the dominion put under his feet. He no longer believes that the weakest must go to the wall, and the helpless be trampled under foot in the march of civilization; nature is no longer a mass of inscrutable, iron decrees, but a treasury of forces to be tamed and used in the redemption of mankind by man; and mankind is no longer a mob of blind victims to panic and passion, but a more or less orderly host marching on to more or less definite goals. The individual, however, can do little by himself; he needs the strength of union for his herculean tasks; and he has found that union in the state. It is not an engine of tyranny, but the lever of social morality; and the function of English government is not merely to embody the organized might and the executive brain of England, but also to enforce its collective and coordinating conscience.

CHRONOLOGICAL TABLE

B.C. 55. Julius Caesar's first invasion of Britain. A.D. 43-110. Roman occupation of Britain. 410-577. Period of Anglo-Saxon colonization and conquest. 597-664. Conversion of the Anglo-Saxons to Christianity. 617-685. Northumbrian supremacy. 685-825. Mercian supremacy. 802-839. Ecgberht establishes West Saxon supremacy. 855. Danes first winter in England. 878. Peace of Wedmore between Alfred and the Danes. 900 (?). Death of Alfred. 900 (?)-975. Edward the Elder, Athelstan, and Edgar. Reconquest of the Danelaw. 978-1013. Ethelred the Unready. Return of the Danes. 1016. Edmund Ironside. 1016-1035. Canute. 1042.-1060. Edward the Confessor and the growth of Norman Influence. 1066. Harold and the Battle of Hastings. WILLIAM I. 1066-1071. The Norman Conquest. Submergence of the Anglo-Saxons. 1085-1086. Domesday Book. The Salisbury Oath. 1087-1100. WILLIAM II. 1100-1135. HENRY I and the beginnings of an administrative system. The Exchequer and *Curia Regis*. 1135-1154. STEPHEN and Matilda. The period of baronial independence, *i.e.* anarchy. 1154-1189. HENRY II restores order, curbs the military power of the barons by scutage (1159), the Assize of Arms (1181), and the substitution of sworn inquest for the ordeal and trial by battle, and their jurisdiction by the development of the royal court of justice through assizes of Clarendon, Northampton, etc. Teaches the people to rely on their judgment. Restrains the sheriffs, and attempts to limit ecclesiastical jurisdiction by the constitutions of Clarendon (1164). Quarrel with Becket.

1189-1199. RICHARD I. Crusade and wars In France. 1199-1210. JOHN'S tyranny. Loss of Normandy (1204). Quarrel with the church and baronage. Tries to retrieve his position by spirited foreign policy. Defeated at Bouvines (1214) and forced to sign Magna Carta (1215). 1216-1272. HENRY III. Beginnings of national government under De Burgh. Naval victory (1217). Alien domination of Henry's favourites provokes baronial resistance. Growth of native wealth and influence, and of an English party in the Barons' War (1258- 1265). Simon De Montfort. Townsfolk summoned to Parliament. 1272-1307. EDWARD I, the first English king since the Norman Conquest. Emergence of the English people, their language, national weapons, towns, commerce. The Model Parliament(1275, 1295). Confirmation of the charters(1297). National resistance to the Papacy, and national enterprises against Wales and Scotland. 1307-1327. EDWARD II. The relapse of Monarchy. Baronage becoming peerage. Thomas of Lancaster. 1327-1377. EDWARD III. Growth of nationalism in religion, politics, literature, trade, and war. The Commons take the constitutional lead abandoned by the peers. Lollardy and hostility to the Papacy. Decay of manorial system: emancipation of villeins: growth of industry and towns. 1377-1399. RICHARD II, Revolt of the peasants and artisans (1381). Tries to emancipate himself from the control of the peers, and is deposed. 1399-1413. HENRY IV and the Lancastrian dynasty. Revolt of the Percies (1403). Henry's troubles with over-mighty subjects. 1413-1422. HENRY V seeks escape from domestic troubles in foreign war. 1415. Battle of Agincourt. Treaty of Troyes (1420). 1422. HENRY VI. Rivalry between Beaufort and Gloucester leads to growth of Lancastrian and Yorkist factions, and these with local anarchy produce the Wars of the Roses (1455-1485). 1461. EDWARD IV secures the throne, and in 1471 defeats both the Lancastrians and Warwick the King-maker. 1483. RICHARD III. 1485. HENRY VII and the House of Tudor. 1487. Organization of the Star Chamber to repress disorder and over- mighty

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